

CCA TEAM POLICY · 2027 SEASON

Clean Water, Clear Cases

A research guide to the wastewater discharge resolution: topic overview, the top ten cases, 100 more case ideas, and a negative & topicality toolkit

Resolved: The United States Federal Government should reform its policy or policies for the regulation of non-agricultural wastewater discharge into navigable waters.

Prepared **October 2026**

Research current as of the resolution release (**Oct. 9, 2026**)

Verify every fact against its original source before using it in a round

Contents

Topic Overview	3
How CCA Debates This Topic	3
The Resolution, Word by Word	4
How Wastewater Discharge Is Regulated Today	5
The Clean Water Act's Own Goals (Your Comparative Advantage Toolkit)	6
Where Things Stand: October 2026 Snapshot	7
Key Court Decisions to Know	9
Map of Affirmative Ground	9
Strategy: Picking a Winning Case for CCA	10
How to Use This Guide (Read This)	11
The Top Ten Cases	12
Ranking at a Glance	12
#1 Stop Forever Chemicals at the Source	14
#2 Sewage Right-to-Know	18
#3 Modernize Outdated Industrial Water Standards	22
#4 Fix the Pipes Before They Break	26
#5 Affordable Clean Water for Hometowns	30
#6 Trust but Verify	34
#7 Zero Pellet Discharge	39
#8 Finish the Coal Plant Wastewater Cleanup	43
#9 Let the Good Samaritans Work	47
#10 Clean Cruise Ships	51
100 More Case Ideas	55
A. PFAS and Emerging Contaminants	55
B. Industrial Effluent Guidelines	58
C. Energy and Extraction	60
D. City Sewage and Overflows	62
E. Affordability, Flexibility, and Streamlining	64
F. Enforcement, Compliance, and Transparency	66
G. Jurisdiction, Federalism, and Legal Clarity	68
H. Vessels, Coasts, and Oceans	70
I. Cross-Border, Regional, and Other Issues	72
J. Special Sources	73
Negative & Topicality Toolkit	75

Topicality in CCA: How It Works	75
Definitions You Can Cut	75
Ten Topicality Arguments to Expect (or Run)	76
Generic Negative Positions	78
Minor Repairs	79
Comparative-Advantage Goal Traps	79
Inherency Watchlist: Check Before Every Tournament	80
Key Sources & Where to Research	82
CCA Rules and Strategy	82
The Law Itself	82
Government Reports and Data	83
Trackers and Independent Analysis	84

Topic Overview

This year’s resolution asks whether the federal government should change the rules for what factories, cities, ships, and other non-farm sources may dump into America’s rivers, lakes, and coastal waters. It is a big, real, and fast-moving topic. As of the day the resolution came out (October 9, 2026), the federal government is mostly **loosening** wastewater rules. Several promised protections are stalled, and Congress is debating major permitting changes. That gives affirmatives plenty of inherency in **both** directions: cases that strengthen protections and cases that streamline, clarify, or make rules more affordable.

THE TEN-SECOND VERSION

- The core law is the **Clean Water Act (CWA)**. It is illegal to discharge pollutants from a “point source” (a pipe, ditch, or vessel) into “navigable waters” without a permit, usually an **NPDES permit**.
- The resolution covers **non-agricultural** wastewater: city sewage, industrial process water, ship discharges, mining and energy wastewater, and similar. Farms, feedlots (CAFOs), and irrigation runoff are **out**.
- The direction of the status quo matters. In 2025–26 EPA delayed coal-plant wastewater limits to 2034, withdrew a proposed meat-processing rule, pulled its PFAS permit guidance, and proposed narrowing which waters count. That is great inherency for **pro-protection** cases and weaker inherency for **deregulation** cases.
- In CCA, **topicality is decided mid-round and a loss on T ends the round**. Choose cases that are obviously “regulation of wastewater discharge,” not funding, farms, drinking water, or dredge-and-fill.

How CCA Debates This Topic

CCA (Christian Communicators of America) runs **Team Policy** debate judged mainly by parents and community volunteers. A few CCA rules change which cases are strongest on this resolution:

CCA rule	What it means for this topic
Stock issues decide the round. The affirmative must win topicality, significance, inherency, and solvency; the negative needs only one.	Pick cases with a clean, provable harm, a clear “the government isn’t fixing this” story, and a simple mechanism that obviously works. Avoid cases that lean on one shaky statistic.
Topicality is raised in the 1NC and decided by the judge after the 2NC cross-ex. Non-topical = immediate negative win. If topical, T is over.	T matters more in CCA than in almost any other league. Avoid gray-zone areas (stormwater-only, ballast water, funding-only plans, groundwater, Tijuana, anything touching agriculture) unless you have a rock-solid T block.

CCA rule	What it means for this topic
Comparative Advantage goals must come from “the specific policy being reformed.” No broad ideological goals, and the aff must accept <i>all</i> the status quo goals of that policy and disclose them in the 1AC.	The Clean Water Act’s own goals in §101 fit this rule perfectly (“restore and maintain the chemical, physical, and biological integrity of the Nation’s waters”). The trap is that §101 also includes state primacy (§101(b)) and minimizing paperwork and duplication (§101(f)) , so a negative can claim your plan hurts those goals.
Advantages may not come from extra-topical mandates.	Put the regulatory change in Mandate 1. Funding, studies, and housekeeping belong in supporting planks and should not generate advantages on their own.
Minor repair is CCA’s defined counter-style tool (a small, non-structural fix within the present system).	Expect “just enforce the existing rule” or “let EPA finish its rulemaking” minor repairs. Build inherency that shows a structural gap : a missing rule, a withdrawn rule, or a statute that blocks the fix.
Purchased cases and evidence books are prohibited ; cite source, author, and date.	This guide gives case ideas and a research trail. It is not a pre-written 1AC. Write your own case and cut your own evidence from the original sources listed.
Splitting the negative is prohibited ; dropped arguments go to the side that made them.	On negative, the 1NC must at least briefly touch every on-case argument. On affirmative, extend every stock issue cleanly in the 1AR and 2AR.

NO LETTER OF INTENT THIS YEAR

CCA posted the 2027 resolution on October 9, 2026 and said there is **no letter of intent** (the same was true for 2025 and 2026). CCA defines none of the terms, including “reform,” “regulation,” “wastewater,” and “non-agricultural.” Topicality debates will turn on dictionaries and the Clean Water Act’s own terms, so both sides should prepare definitions early.

The Resolution, Word by Word

Resolved: The United States Federal Government should reform its policy or policies for the regulation of non-agricultural wastewater discharge into navigable waters.

Term	Best working meaning	Topicality notes
United States Federal Government	Congress, the President and executive agencies (EPA, Army Corps, Coast Guard, NRC, IBWC), and federal courts.	The plan must be federal action. “Let the states handle it” is not a federal reform unless a federal law or rule moves the authority.
reform	To change or amend; dictionary definitions usually add “into an improved form.”	Both directions are arguably topical. Negatives will argue reform means <i>improve</i> , not repeal. A deregulatory aff should show its change <i>improves</i> the policy on a measurable goal.

Term	Best working meaning	Topicality notes
its policy or policies	An existing federal course of action: a statute, regulation, permit program, or official guidance.	Plural, so a multi-part package is allowed if every part is itself topical. “Its” suggests reforming an existing federal policy, not inventing a brand-new regime.
for the regulation of	Binding control through rules, permits, limits, monitoring, reporting, and enforcement.	The biggest trap is funding-only plans (SRF money, grants), which look “effects-topical.” Tie money to a binding regulatory change.
non-agricultural	Not from farming. The CWA lists “industrial, municipal, and agricultural waste” separately and excludes “agricultural stormwater discharges and return flows from irrigated agriculture” from point sources.	CAFOs and irrigation are out. Aquaculture is risky (classified with agriculture). Meat and food processing is industrial manufacturing (safer, but expect a fight).
wastewater	Water that has been used and carries waste: sewage, graywater, industrial process water, produced water, mine drainage, cooling-water blowdown.	The CWA never defines “wastewater.” Stormwater and ballast water are the main gray zones. Oil spills, dredged fill, and sewage sludge on land are poor fits.
discharge	Under the CWA, “any addition of any pollutant to navigable waters from any point source.”	Pretreatment of industrial wastewater sent to city sewers is an indirect discharge (low-medium risk). Groundwater counts only if it is the “functional equivalent” of a direct discharge (<i>County of Maui</i> , 2020).
into navigable waters	CWA: “the waters of the United States, including the territorial seas” (out to 3 nautical miles).	Ocean discharges beyond 3 nm are arguably outside. <i>Sackett v. EPA</i> (2023) narrowed which wetlands count, and new WOTUS rules are pending.

How Wastewater Discharge Is Regulated Today

Almost every affirmative on this topic reforms some piece of the Clean Water Act (formally the Federal Water Pollution Control Act, 33 U.S.C. §1251 and following). Here is the machinery in plain English:

Piece of the system	What it does	Typical reform targets
§301: the prohibition	Discharging any pollutant is unlawful unless it complies with the Act, usually through a permit.	Exemptions; what counts as a “pollutant” (nuclear materials regulated under the Atomic Energy Act are excluded; see <i>Train v. Colorado PIRG</i>).

Piece of the system	What it does	Typical reform targets
§402: NPDES permits	Every point-source discharger needs a permit with limits, monitoring, and reporting. Permits last up to 5 years . 47 states run their own programs; EPA issues permits in Massachusetts, New Hampshire, New Mexico, D.C., most territories, and much of Indian country.	Permit terms (5 vs. 10 years), backlog of expired “zombie” permits, PFAS monitoring, general permits, state authorization.
§304 and §306: Effluent Limitations Guidelines (ELGs)	National, technology-based limits for 59 industrial categories (refineries, chemical plants, power plants, meatpacking, mining, and more). Many are decades old.	Updating outdated ELGs; new categories (PFAS, data centers); delaying or rolling back limits.
§307: toxics and pretreatment	Industries that send wastewater to city sewer plants (“indirect dischargers”) must pretreat it so pollutants do not pass through.	PFAS pretreatment; protecting city plants and ratepayers from industrial pollution.
Secondary treatment and sewer overflows	City sewage plants (about 17,500 nationwide) must meet “secondary treatment.” Older combined sewers in about 700 communities overflow in heavy rain under a 1994 policy.	Overflow notification, sewer-overflow rules, nutrient limits, affordability and integrated planning, §301(h) ocean waivers.
§303: water quality standards and TMDLs	States set standards for each water body; impaired waters get pollution “budgets” (TMDLs) that feed into permits.	PFAS criteria; how standards are written into permits after <i>San Francisco v. EPA</i> (2025).
§309 and §505: enforcement and citizen suits	EPA and states can issue orders, fines, and criminal charges; citizens can sue violators after 60 days’ notice.	Repeat-violator penalties, data integrity, citizen-suit limits or expansions.
§312: vessels	Marine sanitation devices, no-discharge zones, and the Vessel Incidental Discharge Act (VIDA, 2018) for ship discharges like graywater and scrubber washwater.	Cruise ship sewage and graywater, scrubbers, finishing VIDA implementation.
§401: state certification	States and tribes certify that federally licensed projects that may discharge will meet water quality standards.	Narrowing or protecting state review (watch the T risk: often pipelines and dams).
Other federal laws	The Atomic Energy Act (NRC) covers radioactive discharges from nuclear plants; the 1899 Refuse Act ; the Act to Prevent Pollution from Ships ; the International Boundary and Water Commission for border sewage.	Nuclear decommissioning wastewater; cross-border sewage.

The Clean Water Act’s Own Goals (Your Comparative Advantage Toolkit)

Because CCA requires comparative advantage goals to come from the policy being reformed, **CWA §101** is the place to find them. Quote the statute itself (33 U.S.C. §1251) when you cut your card. The key goals, in substance:

- **§101(a), the objective:** “to restore and maintain the chemical, physical, and biological integrity of the Nation’s waters.” This is the cleanest, most quotable goal.
- **§101(a)(1):** the national goal that the discharge of pollutants into the navigable waters be **eliminated by 1985** (never met).
- **§101(a)(2):** an interim goal of water quality that protects fish, shellfish, and wildlife and allows recreation, “fishable and swimmable” waters, **by July 1, 1983** (never fully met).
- **§101(a)(3):** the national policy that the discharge of **toxic pollutants in toxic amounts be prohibited**. This is great for PFAS, coal ash, and refinery cases.
- **§101(a)(4)–(7):** federal help for treatment works, areawide planning, research on technology to eliminate discharges, and nonpoint-source programs.
- **§101(b):** Congress’s policy to “recognize, preserve, and protect the primary responsibilities and rights of States” to prevent pollution. This is the negative’s federalism hook and a goal you must accept.
- **§101(f):** the policy that procedures be streamlined to minimize paperwork and avoid duplication and unnecessary delay. This is the deregulatory aff’s friend and the regulatory aff’s trap.

COMP-AD TIP

Run a comparative advantage when the harm is real but hard to quantify, or when the status quo is already *trying* (so you avoid a fight over need). Name **all** the §101 goals your plan touches in the 1AC, and pre-empt the §101(b) state-primacy argument by keeping states as the front-line permit writers.

Where Things Stand: October 2026 Snapshot

This table is the single most important inherency resource in the guide. Re-check each row before every tournament; several will change during the season.

Issue	Status as of Oct. 9, 2026	Direction
Coal-plant (steam electric) wastewater	The 2024 zero-discharge limits had a latest deadline of Dec. 31, 2029. A final rule (Dec. 31, 2025; effective Mar. 2, 2026) pushed it to Dec. 31, 2034 . EPA also issued a “No Action Assurance” through 2026 and proposed (May 2026) to roll back limits on unmanaged coal-ash leachate.	Loosening (final)
PFAS (“forever chemicals”)	No PFAS discharge limit (ELG) has ever been finalized for any industry (CRS, 2026). The chemical-manufacturer proposal missed its January and July 2026 targets; metal finishing slipped to early 2027. On Aug. 11, 2026 EPA rescinded its 2022 PFAS permitting guidance.	Stalled / loosening
Meat and poultry processors	EPA withdrew its 2024 proposed nitrogen, phosphorus, and E. coli limits on Aug. 28, 2025 ; environmental groups have reportedly challenged the withdrawal (verify the case status).	Loosening (final)

Issue	Status as of Oct. 9, 2026	Direction
Outdated industrial standards	In <i>Waterkeeper Alliance v. EPA</i> (9th Cir., June 18, 2025) the court said EPA's refusal to update standards for seven industries (including refineries and plastics) ignored technology advances. No EPA response found.	Stalled
"Waters of the United States"	Narrowing rule proposed Nov. 2025; a supplemental proposal (Sept. 9, 2026) offers narrower options, including limiting coverage to perennial waters. Comments closed Oct. 9, 2026. Not final.	Narrowing (proposed)
Section 401 state certification	EPA proposed narrowing state review in Jan. 2026; no final rule found.	Narrowing (proposed)
Permitting reform in Congress	PERMIT Act (H.R. 3898) passed the House 221–205 on Dec. 11, 2025 (10-year NPDES permits, §401 limits, permit shield); it sits in Senate EPW. A bipartisan Senate package (reported as S. 5653 , Sept. 30, 2026) would narrow §401 and speed permits; floor timing is disputed.	Streamlining (pending)
Ship discharges (VIDA)	EPA's national standards were finalized Oct. 2024 but have no force until the Coast Guard writes its rules , due about two years later (fall 2026). No Coast Guard proposal was found; ships still operate under the 2013 Vessel General Permit.	Stalled
Sewer overflows	The only specific, binding federal public-notice rule covers combined sewer overflows into the Great Lakes (2018 rule); elsewhere the 1994 combined-sewer policy lists "public notification" only as a vague minimum control. A national sanitary-sewer-overflow rule drafted in 2001 was never published or finalized.	Gap
Enforcement and budget	Watchdogs report federal judicial enforcement at multi-decade lows (e.g., 16 DOJ civil complaints on EPA referrals in the administration's first year, per the Environmental Integrity Project); EPA disputes this and cites 2,127 civil cases concluded in FY2025 (concluded cases are not the same as new filings). The FY2027 budget request would cut EPA about 52%.	Contested
Big recent events	The Potomac Interceptor sewer collapse (Jan. 19, 2026) spilled about 240 million gallons of raw sewage (EPA estimate) near Washington, D.C.; the U.S. sued DC Water. The Tijuana River sewage crisis continues despite a 2025 U.S.–Mexico agreement and \$600 million-plus in U.S. funding.	Response ongoing

WHAT LAY JUDGES ALREADY BELIEVE

In Gallup's March 2026 environment poll, **50% of Americans** said they worry "a great deal" about pollution of rivers, lakes, and reservoirs, and water pollution has ranked at or near the top of Americans' environmental worries for decades. Clean water is usually less divisive than issues like climate change. Frame cases around **families, health, stewardship of creation, fairness, and accountability**, not partisan politics.

Key Court Decisions to Know

Case	Holding in one sentence	Why debaters care
<i>Sackett v. EPA</i> (2023)	The CWA covers relatively permanent waters and only wetlands with a continuous surface connection to them; the “significant nexus” test is out.	Defines “navigable waters”; WOTUS cases and harms from reduced coverage.
<i>County of Maui v. Hawaii Wildlife Fund</i> (2020)	A permit is required when pollution reaches navigable waters through groundwater in a way that is the “functional equivalent” of a direct discharge.	Groundwater and septic/injection-well cases; the “into” T question.
<i>City & County of San Francisco v. EPA</i> (Mar. 4, 2025)	EPA may not put vague “end-result” requirements in permits (such as “don’t cause a violation of water quality standards”); permits need specific requirements.	Pushes the system toward specific numeric limits. Useful for both pro-regulation (we need real standards) and streamlining (clear permit terms) cases.
<i>Loper Bright v. Raimondo</i> (2024)	Courts no longer defer to agency readings of ambiguous statutes (<i>Chevron</i> overruled).	Statutory fixes are more durable than agency rules; a solvency point for “Congress should write it into law.”
<i>Waterkeeper Alliance v. EPA</i> (9th Cir. 2025)	EPA’s refusal to update seven industries’ standards was arbitrary because it ignored technology advances; remanded.	Inherency and solvency for outdated-standards cases.
<i>Train v. Colorado PIRG</i> (1976)	Radioactive materials regulated under the Atomic Energy Act are not CWA “pollutants.”	The nuclear-wastewater gap.

Map of Affirmative Ground

Most cases on this topic fall into ten families. Part III organizes the 100 extra case ideas the same way.

Area	What it covers	T risk
PFAS and emerging contaminants	Forever chemicals, microplastics, pharmaceuticals, plastic pellets, 1,4-dioxane	Low
Industrial effluent guidelines	Refineries, chemical plants, metal finishing, pulp and paper, food processing, data centers, chip fabs	Low
Energy and extraction	Coal-plant wastewater, oil and gas produced water, mining, thermal discharges	Low-Med
City sewage and overflows	Combined and sanitary sewer overflows, aging pipes, nutrient limits, ocean waivers	Low
Affordability and streamlining	Integrated planning, small-town compliance, permit terms, general permits, clear permits	Low-Med

Area	What it covers	T risk
Enforcement and transparency	Monitoring, data integrity, repeat violators, penalties, citizen suits, federal facilities	Low-Med
Jurisdiction and federalism	WOTUS, §401, state primacy, tribes, groundwater	Med
Vessels and coasts	Cruise ships, scrubbers, VIDA, no-discharge zones, military vessels, ocean outfalls	Low-Med
Cross-border and regional	Tijuana River, New River, Nogales, Great Lakes, Elk River selenium	Med-High
Special sources	Nuclear plant wastewater, desalination brine, fertilizer plants, deep-well alternatives	Med

Strategy: Picking a Winning Case for CCA

- 1. Win topicality before the round starts.** Your plan text should name the legal instrument (for example, “EPA shall amend 40 CFR Part 414” or “Congress shall amend CWA §402”) and say it applies to non-agricultural wastewater discharged into navigable waters. Define “wastewater” and “regulation” in the 1AC.
- 2. Choose structural inherency.** The best inherency on this topic is a *final* action going the wrong way (a rule withdrawn or delayed) or a *statutory* gap (no law requires it). Proposals and pending bills can change mid-season, so date every inherency card.
- 3. Make significance human.** Lay judges remember the Potomac sewage spill, a family that can’t eat the fish they catch, or a beach closed all summer. Pair one national number with one local story.
- 4. Keep the plan simple.** One agency, one or two mandates, a clear deadline, enforcement through existing NPDES permits, and funding through normal means or a modest fee on dischargers.
- 5. Pre-empt the obvious disadvantage.** Every pro-regulation case faces “it costs jobs or raises bills.” Build in phase-ins, small-business or small-town flexibility, and a “polluter pays” funding mechanism. Every deregulatory case faces “it hurts the environment,” so keep backstops.
- 6. Consider the judge pool.** Most CCA judges are homeschool parents and community volunteers. Cases framed around accountability, protecting children, honest data, local control, and “polluter pays” (not “big government”) tend to persuade across the spectrum.

How to Use This Guide (Read This)

EVIDENCE CAVEAT

This guide was built in one day from web research, with a team of AI research assistants working from search-engine summaries of government, legal, news, and advocacy sources. Every number was cross-checked where possible, and uncertain items are flagged, but **you must verify every fact in the original source before you read it as evidence in a round.** That is also what CCA requires: no evidence books, no purchased cases, and every card must carry source, author, and date. This guide is a set of research notes, not evidence: never read from it as a source in a round.

Treat each case below as a **starting point**. The “Starter Evidence Trail” under each top case tells you where to go to cut real cards. Where a fact may change during the season (pending rules, bills, lawsuits), the guide says so.

The Top Ten Cases

These ten cases scored best on the five things that win CCA rounds in front of parent judges: **topicality safety, inherency you can prove from the Federal Register or Congress.gov, a harm a judge can picture, a solvency mechanism with a real-world model, and low exposure to the negative's best disadvantages.** Each case gives you the general harms or goals, a sample plan, the advantages, and the stock-issue picture, followed by likely negative attacks with answers and a starter evidence trail.

Ranking at a Glance

#	Case	Type	Best for	Main risk
1	Stop Forever Chemicals at the Source	Harms · Stronger protection	Strongest all-around case; huge lay appeal	EPA could publish a PFAS proposal mid-season
2	Sewage Right-to-Know	Harms or Comp. Ad	Teams that want a clean, cheap, obviously topical case	"Notification doesn't stop overflows"
3	Modernize Outdated Industrial Water Standards	Comp. Ad	Teams comfortable with legal/structural arguments	Cost to refineries and chemical plants
4	Fix the Pipes Before They Break	Harms	A vivid 2026 story (Potomac collapse)	"The pipe was inspected"; ratepayer cost
5	Affordable Clean Water for Hometowns	Comp. Ad	Judges wary of federal mandates; no federal cost	"This just delays cleanup"
6	Trust but Verify	Harms	Accountability framing; reaches every permit	Self-reported data may be mostly accurate
7	Zero Pellet Discharge	Comp. Ad	Narrow, concrete, cheap; great props	"Small harm"; stormwater T
8	Finish the Coal Plant Wastewater Cleanup	Comp. Ad + safety valve	Inherency written in the Federal Register	Energy/reliability disadvantage
9	Let the Good Samaritans Work	Comp. Ad	Strongly bipartisan; volunteers vs. red tape	Topicality (cleanup vs. regulation)
10	Clean Cruise Ships	Comp. Ad	Familiar target; plan is cheap	Ships shift discharges past 3 miles

HOW TO READ THE RATINGS

- **Topicality:** how likely a reasonable parent judge is to vote the case non-topical. “Low risk” means you should still carry a short T block.
- **Inherency:** how clearly you can show the status quo will not solve, using official documents.
- **Significance / Solvency:** how strong the available evidence is, not how important the issue feels.
- **DA exposure:** how dangerous the negative’s best disadvantage is.
- **Goals:** each case lists the §101 goals its advantages rest on. Under CCA’s comparative-advantage rules you must still disclose and accept **all** the goals of the policy you reform (see Appendix A).
- Items flagged “**Watch**” may change during the season (a rule, bill, or court decision). Re-check them before every tournament.

BEFORE YOU RUN ANY OF THESE

The plans below are **models**, not finished plan texts. Rewrite them in your own words, cut the planks you can’t defend in cross-ex, and pull every number from the original source before it goes on a card. All research for this guide came from search-engine summaries, so open the original before carding any fact, whether or not it is marked “verify” or “check first.”

Stop Forever Chemicals at the Source

EPA says no level of PFOA or PFOS in drinking water is safe, yet there is no national limit on how much PFAS a factory may send into a river. Set PFAS discharge limits at the industrial source.

Topicality: **Low risk**Inherency: **Strong**Significance: **High**Solvency: **Strong**Lay appeal: **Very high**Watch: **OCPSPF proposal could publish**

WHY IT MADE THE TOP TEN

“Forever chemicals” are already in the news, so judges understand the harm instantly. The status quo is moving **backward**: EPA rescinded its PFAS permit guidance on August 11, 2026, and has repeatedly missed its own targets for PFAS discharge limits. Michigan’s program gives you real-world solvency, and the plan puts costs on polluters instead of families.

HARMS / PROBLEM

- **Health.** The International Agency for Research on Cancer classified PFOA as carcinogenic to humans (Group 1) and PFOS as possibly carcinogenic (Group 2B) in November 2023. EPA’s 2024 drinking-water rule set the health goal for PFOA and PFOS at **zero** and the enforceable limit at 4 parts per trillion.
- **In our rivers and fish.** An analysis of 500+ EPA fish samples (Barbo et al., *Environmental Research*, 2023) found eating one locally caught freshwater fish a year can equal a month of drinking water with PFOS at 48 ppt. USGS estimated at least 45% of U.S. tap water contains one or more PFAS (2023).
- **Industry is the source.** In Michigan’s statewide review, 31% of 95 treatment plants with industrial pretreatment programs found significant industrial PFAS sources that exceeded state values. A May 2026 AP investigation found Georgia officials knew carpet mills were polluting rivers that feed Alabama drinking water while the public was not told.
- **Families pay the bill.** Wilmington, North Carolina’s utility spent about \$43 million on carbon filters plus about \$5 million a year to run them (2022 figures; later reporting puts the total higher) to strip Chemours’ PFAS out of the Cape Fear River, and ratepayers covered the cost. Minnesota estimated removing PFAS from municipal wastewater would cost \$14–28 billion over 20 years.

STATUS-QUO GOALS (COMP. ADVANTAGE OPTION)

- CWA §101(a)(3): “the discharge of toxic pollutants in toxic amounts be prohibited.”
- CWA §101(a)(2): water quality that protects fish, shellfish, and wildlife and allows recreation.
- CWA §101(a): restore and maintain the “chemical, physical, and biological integrity of the Nation’s waters.”

PLAN

AGENCY	EPA Office of Water, using existing authority under CWA §§301, 304, 306, 307, and 402.
MANDATES	1. Limits. Within 18 months, EPA finalizes PFAS effluent limitations guidelines (direct dischargers) and categorical pretreatment standards (indirect dischargers) for PFAS manufacturers/formulators (organic chemicals, plastics, synthetic fibers) and chromium plating/metal finishing. Within 36 months: landfill leachate, textile and carpet finishing, and pulp and paper. 2. Measure it. Within 6 months, EPA finalizes approval of PFAS test Method 1633A under 40 CFR Part 136. Within 12 months, NPDES permits for covered facilities, and for city treatment plants receiving their wastewater, require PFAS monitoring with public reporting. 3. Source control. City treatment plants with pretreatment programs identify significant industrial PFAS users and impose local limits or reduction plans, modeled on Michigan's Industrial Pretreatment Program PFAS Initiative, recovering program costs from those industrial users. 4. Scope. Applies only to non-agricultural wastewater discharged to navigable waters directly or through a public treatment plant; does not regulate agriculture, sewage sludge, or stormwater.
ENFORCEMENT	Existing NPDES permits, EPA and state enforcement under CWA §309, and citizen suits under §505.
FUNDING	Normal means; program costs recovered from regulated industrial users. No new taxpayer spending.

ADVANTAGES

Toxics out of the river. Numeric limits at the source cut PFAS before it reaches rivers and fish. Michigan reports a 59% drop in PFOS discharged from participating plants since 2018 after requiring industrial source control, with some plants reaching 99%.

Polluter pays, not ratepayers. Treating PFAS at concentrated industrial sources is likely far cheaper than treating diluted flows at thousands of city plants or drinking-water utilities (no industrial cost figure found yet). Minnesota found end-of-pipe municipal treatment costs \$2.7–18 million per pound removed. The wastewater utilities' own association (NACWA) has supported PFAS effluent guidelines for manufacturers because utilities cannot cost-effectively remove PFAS at their flow volumes.

One national floor. Rivers cross state lines (Georgia to Alabama). A federal floor gives every state's permit writers the same numbers and fixes what EPA itself described when it pulled its 2022 guidance: an approach that "resulted in inconsistent application across the country."

INHERENCY

No PFAS discharge limit has been finalized for **any** industry (CRS, 2026). OMB withdrew the first proposal on Jan. 21, 2025; EPA then missed its January and July 2026 targets, and metal finishing slipped to early 2027. On Aug. 11, 2026 EPA **rescinded** its 2022 guidance telling permit writers to monitor PFAS, saying national standards should come first (“cart before the horse”). No final approval of PFAS test methods under 40 CFR Part 136 was found as of Oct. 9, 2026. The Clean Water Standards for PFAS Act (H.R. 6668 / S. 3457) sits in committee.

TOPICALITY

Low. Effluent limits for industrial point sources are the textbook “regulation of non-agricultural wastewater discharge.” The one gray area is **pretreatment** (factories that send waste to a city sewer). Answer: pretreatment exists to stop “pass through” into navigable waters and is enforced through the city plant’s NPDES permit, and the plan’s direct-discharge limits are topical on their own. Keep airports and firefighting foam, sewage sludge, and stormwater out of the plan.

SOLVENCY

Michigan reports that source control works at scale (state agency figures), using powers EPA already has (40 CFR Part 403): 20 plants adopted PFAS limits on industrial users and 86 industrial facilities installed pretreatment or eliminated PFAS products. Treatment technologies (granular activated carbon, ion exchange, reverse osmosis) are reported to work best on small, concentrated industrial streams, and PFAS-free substitutes exist for decorative chrome plating (hard chrome is harder). ELGs written into permits are enforceable by EPA, states, and citizens.

LIKELY NEGATIVE ATTACKS & QUICK ANSWERS

Neg says...	Aff answers...
Minor repair: “EPA’s chemical-manufacturer rule is coming.”	It has been withdrawn once and missed two deadlines; a proposal is not a limit; it covers only PFAS makers, not textiles, paper, landfills, or city plants; EPA just took away the interim permit tool. The plan adds deadlines, breadth, and monitoring.
DA: Costs, jobs, and reshoring.	By law ELGs must be “economically achievable” (CWA §301(b)(2)(A); confirm wording). Only PFAS users are affected. The status quo shifts far larger costs to ratepayers (\$43 million in Wilmington; \$14–28 billion in Minnesota).
Solvency: “PFAS just moves” (disposal of filters and concentrate).	EPA’s 2026 destruction and disposal guidance identifies hazardous-waste landfills as often lowest-risk; small concentrated volumes are far easier to manage than PFAS spread through rivers.
Burden on cities (“passive receivers”).	The plan puts numeric limits on industrial users, not cities; city plants already run pretreatment programs; costs are recovered from the industry; NACWA supports source control.

Neg says...	Aff answers...
States solve (Michigan, New York, Minnesota).	Most states have not acted; state standards vary wildly; EPA itself issues permits in MA, NH, NM, D.C., and territories; the AP found Georgia regulators knew and did nothing.
“Science is uncertain.”	ELGs are technology-based, so they need no exact health threshold. EPA kept the 4 ppt PFOA/PFOS drinking-water limits, and its health goal is zero.

STARTER EVIDENCE TRAIL

- **Congressional Research Service**, “Regulating PFAS Under the Clean Water Act” (IF12148), Sept. 30, 2026 (inherency). everycrsreport.com
- **Waste Dive**, “EPA pulls guidance to address PFAS in wastewater permits,” Aug. 2026 (rescission and EPA’s rationale). wastedive.com
- **Environment+Energy Leader**, “EPA PFAS Wastewater Rule for Platers Slips to 2027,” Sept. 2026 (missed deadlines). environmentenergyleader.com
- **Michigan EGLE**, Industrial Pretreatment Program PFAS Initiative page and Dec. 2025 PFAS Summit update (59% PFOS reduction; 86 facilities). michigan.gov
- **Minnesota Pollution Control Agency**, “Groundbreaking study shows unaffordable costs of PFAS cleanup from wastewater,” June 2023. pca.state.mn.us
- **IARC**, Monographs Vol. 135 news release on PFOA and PFOS, Nov. 2023. iarc.who.int
- **Barbo et al.**, “Locally caught freshwater fish across the United States are likely a significant source of exposure to PFOS,” *Environmental Research* 220 (2023). EWG-affiliated authors; expect a bias attack.
- **NACWA**, “NACWA Supports Potential Effluent Guidelines for PFAS Manufacturers,” May 19, 2021. nacwa.org
- **AP**, investigation of Georgia carpet-mill PFAS (May 2026), via WTOP and AJC. wtop.com
- **Before every tournament:** search the Federal Register for “Organic Chemicals, Plastics, and Synthetic Fibers” PFAS (RIN 2040-AG10). If the proposal has published, shift inherency to “proposal only, narrow, not final.”

Sewage Right-to-Know

When a sewer overflows into a river, the public often never finds out. Extend the Great Lakes sewage-alert rule nationwide: monitor overflow points and warn the public within four hours.

Topicality: **Low risk**Inherency: **Strong**Significance: **Moderate**Solvency: **Strong**Lay appeal: **Very high**DA exposure: **Low (expected low cost)**

WHY IT MADE THE TOP TEN

It is the cleanest case on the topic for a stock-issues league: obviously topical, inherent (Congress has introduced the fix since 2008 without passing it), expected to be low-cost (no verified estimate yet), which weakens cost disadvantages, and built on a working federal model. Every parent judge understands “you deserve to know before your kids swim in sewage.”

HARMS / PROBLEM

- **Sewage overflows are routine.** EPA’s last national estimate (2004) put combined sewer overflows at about **850 billion gallons a year** from roughly 700 communities. In 2026 alone: the Potomac Interceptor collapse spilled about 240 million gallons (EPA estimate) near Washington, D.C. (January); Milwaukee overflowed about 2.7 billion gallons in April; an Atlanta combined-sewer overflow was blamed for killing about 44,000 fish in the Chattahoochee (May); and a power failure sent 39 million gallons of partly treated sewage into the Hudson at Yonkers (July).
- **People get sick.** A Boston University study of 17 Massachusetts cities (2024) found emergency-room visits for gastrointestinal illness rose 22% after large overflows and 62% after the largest, peaking about four days later. A Cincinnati study found children living within 500 meters of overflow outlets were about 16% more likely to visit the ER for severe vomiting or diarrhea after overflow events.
- **They aren’t told.** In one Georgia survey of 238 beachgoers, about a third did not know beaches are monitored and about 65% said signage was inadequate. Surfrider’s 2025 testing found 23% of 10,157 beach samples exceeded health standards.
- **Lost livelihoods.** A Maine study estimated shellfish-flat closures cost about \$3.6 million (2001–09), with about \$2 million tied to town sewer overflows.

STATUS-QUO GOALS (COMP. ADVANTAGE OPTION)

- CWA §101(a)(2): water quality that provides “for recreation in and on the water” (“swimmable”).
- CWA §101(e): public participation in carrying out the Act shall be provided for and encouraged (verify exact text).

PLAN

AGENCY	EPA, by amending the NPDES regulations (40 CFR Part 122) on the model of the Great Lakes rule (40 CFR 122.38).
MANDATES	1. Monitor. Every permitted city sewer system installs flow or level monitoring (or validated modeling) at combined sewer overflow outfalls and known sanitary sewer overflow points. 2. Notify. Within 4 hours of learning an overflow has reached navigable waters, notify the local health department, downstream drinking-water utilities, tribes, downstream states, and the public (signs at access points, text/email alerts, online map), followed by a supplemental report and an annual public report. 3. Report. Submit overflow data electronically to EPA's public ECHO database.
ENFORCEMENT	Enforceable NPDES permit conditions (EPA, states, citizen suits). Authorized states adopt equivalent rules as a minimum floor; small systems get extra time and hardship extensions (check the Great Lakes rule's terms at 40 CFR 122.38).
FUNDING	Normal means. The plan directs EPA to issue guidance making monitoring and notification equipment eligible under existing sewer-overflow grants and revolving funds. No new appropriation.

ADVANTAGES

Families avoid sewage exposure. A text alert or a sign at the river gives people the chance to stay out of contaminated water during the days of highest risk, the same days the BU study found ER visits spike. (No study yet measures how many people actually stay out; present this as reasoning.)

Accountability drives repairs. Public data turns hidden overflows into facts that voters, regulators, and courts can act on. Massachusetts' first notification report revealed about 1.44 billion gallons in six months; In England, monitoring 100% of storm overflows put spills in the public eye and helped unlock a major investment program (the Environment Agency says the effect on spills is not yet proven). In New York, a 2026 Appellate Division decision in a citizen case held the city must notify when discharges begin (appeal status unverified).

Better data for smarter spending. EPA's national overflow numbers are 20 years old. Real data shows cities which pipes to fix first.

INHERENCY

There is **no federal public-notice rule for sanitary sewer overflows**; EPA's 2001 SSO rule was signed and then pulled, and never finalized. For combined sewers, the 1994 CSO Control Policy lists "public notification" as a vague minimum control with no deadline or content standard. Only Great Lakes CSOs have a specific federal rule (2018), and only because Congress ordered it. Sewage Right-to-Know bills have been introduced since 2008 and never passed, and none was found in the 119th Congress. State laws are a patchwork. In 2025 a New Mexico official told EPA there is "no public notification requirement" for overflows that reach water, so EPA added a notice condition to that individual permit.

TOPICALITY

Low. Municipal sewage is non-agricultural wastewater; the plan amends the NPDES rule (CWA §402) that regulates those discharges; EPA already placed public notification inside the NPDES regulations at 40 CFR 122.38. If the negative says "notification isn't regulation," answer that it is a binding, enforceable condition imposed on dischargers. Keep stormwater-only systems out of the plan.

SOLVENCY

The Great Lakes rule has operated since 2018, with communities posting signs, alerts, and annual reports. New York (2012), Massachusetts (2021), and Maryland already run notification programs. England reached 100% overflow monitoring by 2023. Be honest: notification prevents **exposure** and creates **accountability**; do not claim it alone reduces overflow volume.

LIKELY NEGATIVE ATTACKS & QUICK ANSWERS

Neg says...	Aff answers...
"The CSO Control Policy and Great Lakes rule already require notice."	The 1994 policy is a flexible guideline with no timing or content standard, and it covers only combined sewers. SSOs have nothing. Congress had to order a specific Great Lakes rule because the generic policy was not working.
"States already do this."	State laws are a patchwork that differ on deadlines and audiences; rivers cross state lines; even New York's law needed a court order to work. The plan is a floor that states can exceed.
"Notification doesn't stop overflows."	Correct, and the plan never claims it does. It stops exposure, and §101(a)(2) promises swimmable water. Public data helped unlock investment in England.
DA: Unfunded mandate on small towns.	Signs, texts, and websites should be low-cost (no verified estimate yet; pull the cost analysis from EPA's 2018 Great Lakes rule); phase-ins apply; the plan makes the costs grant-eligible.

Neg says...	Aff answers...
“Alert fatigue / false alarms.”	Alerts tie to actual overflows reaching water; the documented problem is too little notice, not too much.
“Cities will be sued for admitting overflows.”	Overflows must already be reported to regulators within 24 hours; the liability is the overflow, not the notice. NYC was sued for failing to notify.

STARTER EVIDENCE TRAIL

- **EPA**, Final Rule: Public Notification Requirements for CSOs to the Great Lakes, 83 Fed. Reg. 712 (Jan. 8, 2018); 40 CFR 122.38. [govinfo.gov](https://www.govinfo.gov)
- **EPA Region 6**, Response to Comments, NPDES permit NM0028487 (July 2025), quoting the state’s statement that no public-notice requirement exists. [epa.gov](https://www.epa.gov)
- **Boston University School of Public Health**, CSOs and GI illness in Merrimack Valley cities, reported May 2024 (WBUR). [wbur.org](https://www.wbur.org)
- **EPA**, *Report to Congress: Impacts and Control of CSOs and SSOs* (EPA 833-R-04-001), Aug. 2004. Old but the official national estimate; the age is itself an inherency point.
- **Riverkeeper**, Sewage Pollution Right to Know (NY), and the 2026 Appellate Division decision requiring NYC to notify at the start of discharges. [riverkeeper.org](https://www.riverkeeper.org)
- **MassDEP**, sewage notification regulations (314 CMR 16.00) and annual reports. [mass.gov](https://www.mass.gov)
- **Environment Agency (England)**, Event Duration Monitoring data releases, 2023–2024. [gov.uk](https://www.gov.uk)
- **2026 incident coverage**: EPA on the Potomac Interceptor; Fox6 Milwaukee (MMSD); AJC on the Chattahoochee fish kill; ABC7 NY on Yonkers.

Modernize Outdated Industrial Water Standards

The Clean Water Act promises “best available technology,” but refinery water rules still rest on 1985 technology and plastics-plant rules on the early 1990s. Make EPA review and update stale standards on a deadline.

Topicality: **Low risk**Inherency: **Strong**Significance: **High**Solvency: **Moderate**Lay appeal: **High**DA exposure: **Moderate (costs)**

WHY IT MADE THE TOP TEN

It attacks the structural root of many industrial problems at once, and both a federal appeals court (2025) and GAO (2012) found the same flaw: EPA does not look at whether better technology exists. The “1985 rules for 2026 factories” story is simple for lay judges, and the plan keeps the Act’s own cost test, which blunts the economy disadvantage.

STATUS QUO (HARMS TO HIGHLIGHT UNDER EACH ADVANTAGE)

- **Old rules.** EPA regulates industrial wastewater through effluent guidelines for 59 industry categories. The Environmental Integrity Project (EIP) reports limits for almost two-thirds of covered industries are 30–50 years old: inorganic chemicals 1982, petroleum refining 1985, fertilizer 1986, organic chemicals and plastics in the early 1990s.
- **Unregulated pollutants from refineries.** EIP found 81 refineries released about 60,000 lbs of selenium, 15.7 million lbs of nitrogen (equal to 128 city sewage plants), and 1.6 billion lbs of dissolved solids in 2021. EPA has never set refinery limits for selenium, benzene, cyanide, or mercury.
- **Plastics plants.** EIP’s 2024 report *Plastic’s Toxic River* found 70 plastics plants discharged about 12 million lbs of nitrogen and phosphorus in 2023, and all but one had no nutrient limit.
- **Why it matters.** EPA’s own selenium criterion explains that selenium moves up the food chain and passes from mother fish to eggs, causing larval deformities and death. Nutrients feed dead zones: the 2025 Gulf dead zone covered 4,402 square miles, far above the 1,900-square-mile goal.

STATUS-QUO GOALS (COMP. ADVANTAGE OPTION)

- CWA §101(a)(3): “the discharge of toxic pollutants in toxic amounts be prohibited.”
- CWA §101(a) objective and §101(a)(2): restore the integrity of the Nation’s waters; protect fish, shellfish, and wildlife.
- Also accept and answer §101(b) (state primacy) and §101(f) (avoid needless paperwork and delay): one national technology review replaces ad hoc, state-by-state permit fights.

PLAN

AGENCY

Congress amends CWA §304(b) and (m); EPA Office of Water implements.

MANDATES

1. **Mandatory review.** Every effluent guideline for direct dischargers more than 20 years old gets a technology review; EPA **must revise** it where an economically achievable technology removes pollutants better than the one the guideline was based on, or publish the data showing none exists.
2. **Priority list.** The seven categories in *Waterkeeper Alliance v. EPA* (petroleum refining; organic chemicals, plastics and synthetic fibers; inorganic chemicals; fertilizer; pesticides; plastics molding and forming; nonferrous metals) must be completed within 3 years; other old guidelines follow on a rolling schedule.
3. **Unregulated pollutants.** Each review must evaluate nitrogen, selenium, and other pollutants with no federal limit in that category.
4. **Data.** Within 1 year, dischargers in the seven categories must monitor and report nitrogen, selenium, and other toxic pollutants.

ENFORCEMENT

Every deadline is a nondiscretionary duty enforceable by citizen suit (CWA §505); revised limits enter NPDES permits with a phase-in.

FUNDING

Normal appropriations for EPA's review work; industry pays only where a technology is found economically achievable.

ADVANTAGES

Toxics out of our rivers (§101(a)(3)). Forced reviews must address pollutants such as selenium, benzene, cyanide, and mercury that have no federal refinery limit today. Selenium-removal technology (biological treatment) already exists, and at least one refinery has selected a selenium bioreactor.

Healthier fisheries and fewer dead zones (§101(a)). Refinery and plastics-plant nitrogen is the non-farm slice of the nutrient problem the resolution lets us fix, and it is large: refinery nitrogen alone equals 128 sewage plants.

Predictable rules. A statutory schedule replaces the cycle of lawsuits, remands, and reversals with a clear timeline industry can plan around.

INHERENCY

The statute says EPA revises guidelines “if appropriate” (verify wording), and the Ninth Circuit confirmed EPA does not have to revise outdated ones. In *Waterkeeper Alliance v. EPA* (June 18, 2025) it held EPA’s refusal to update seven categories was arbitrary because EPA ignored technology advances, but it only remanded for a better explanation, with no deadline. No EPA response has been found, and no final Effluent Guidelines Program Plan 16 was found (the preliminary plan dates to December 2024). GAO found the same failure in 2012: of 12 categories that got further review since 2003, only 3 got new or updated limits. EPA’s 2025–26 actions run the other way (steam-electric delays, meat and poultry withdrawal).

TOPICALITY

Low. Effluent guidelines are national limits on industrial wastewater that become NPDES permit limits. Cut pretreatment from the plan to avoid an “indirect discharge” fight. If the negative argues fertilizer and pesticide *plants* are “agricultural,” answer that they are chemical manufacturing facilities regulated as industrial point-source categories.

SOLVENCY

The failure is procedural (EPA never asks whether better technology exists), so a mandatory review with enforceable deadlines fixes the cause. Technology-forcing standards have worked when EPA uses them; EPA projected its 2015 power-plant rule would cut 1.4 billion lbs of pollution a year using technology already widely used. The plan does not pick a technology. It forces EPA to answer the question, and if no affordable technology exists, EPA must show its data.

LIKELY NEGATIVE ATTACKS & QUICK ANSWERS

Neg says...	Aff answers...
DA: Refinery costs mean higher gas prices.	No cost estimate was found; the refining industry itself says EPA never finished its data collection. The Act’s “economically achievable” test stays in place; only about 81 direct-discharge refineries are affected; phase-ins apply.
Minor repair: “The court already ordered EPA to reconsider.”	The remand only requires a better explanation, with no deadline, in one circuit, for seven categories. The plan changes “if appropriate” to “must,” which is a change to the policy itself, not a repair.
“EPA is already doing the PFAS chemical rule.”	That rule covers only PFAS manufacturers, has missed two deadlines, and does not touch nitrogen, dioxins, refining, fertilizer, or the other categories.

Neg says...	Aff answers...
“States handle this in permits.”	All but one of 70 plastics plants had no nutrient limit; the 1972 Act adopted national technology standards because state-by-state water-quality permitting had failed.
EPA lacks capacity.	Phasing: seven categories first; the GAO record shows neglect, not impossibility, is the problem.
“Nutrients are mostly farms.”	True for the Gulf overall, which is why the resolution targets the non-farm slice; nitrogen from refineries and plastics plants has no federal limit.

STARTER EVIDENCE TRAIL

- **Ninth Circuit**, *Waterkeeper Alliance v. EPA*, No. 23-636 (June 18, 2025). law.justia.com
- **GAO**, GAO-12-845, *EPA Has Improved Its Review of Effluent Guidelines but Could Benefit from More Information on Treatment Technologies* (Sept. 2012). gao.gov
- **Environmental Integrity Project**, *Oil’s Unchecked Outfalls* (Jan. 2023). environmentalintegrity.org
- **Environmental Integrity Project**, *Plastic’s Toxic River* (Nov. 14, 2024). environmentalintegrity.org
- **EIP**, Clean Water Act fact sheet with ELG ages (May 2024). [PDF](#)
- **EPA**, Aquatic Life Criterion for Selenium (2016). epa.gov
- **Alston & Bird**, analysis of the *Waterkeeper* decision (July 2025). alston.com
- **Neg evidence to prepare for:** API/AFPM comments on Preliminary Plan 16; EPA Inspector General (2004), “Effectiveness of Effluent Guidelines Program for Reducing Pollutant Discharges Uncertain.”
- **Check first:** the opinion’s exact refinery nitrogen-reporting statistic (a widely repeated “9 of 331” figure conflicts with industry’s count of about 140 U.S. refineries), and Ninth Circuit docket 23-636 for any rehearing activity.

Fix the Pipes Before They Break

Twenty-five years after EPA drafted a national sewer-overflow rule, it still has never been finalized. Require every sewer system to inspect and maintain its pipes on a schedule, so the next Potomac collapse is prevented instead of litigated.

Topicality: **Low risk**Inherency: **Strong**Significance: **High**Solvency: **Moderate**Lay appeal: **Very high**DA exposure: **Moderate (ratepayer cost)**

WHY IT MADE THE TOP TEN

The Potomac Interceptor collapse (January 2026) is the most vivid wastewater event in years, it happened beside the nation's capital, and the current EPA itself called it “a sewage crisis of historic proportion” and sued DC Water, alleging it failed to properly operate and maintain its system. The case asks for prevention instead of after-the-fact lawsuits, an idea that appeals across the political spectrum.

HARMS / PROBLEM

- **The Potomac.** On January 19, 2026, a 1960s sewer main carrying up to 60 million gallons a day collapsed along the Clara Barton Parkway in Montgomery County, Maryland; EPA says about **240 million gallons** of raw sewage poured into the Potomac. DOJ's April 2026 complaint alleges DC Water failed to properly operate and maintain its system, and Maryland sued too.
- **It happens everywhere, all the time.** EPA estimates 23,000–75,000 sanitary sewer overflows a year releasing 3–10 billion gallons (2004 Report to Congress, restated in May 2026 House testimony). Most are smaller, chronic spills from blockages and breaks, the kind of failures maintenance programs aim to prevent. Recent examples: a pipe burst in Pueblo, Colorado sent about 4.25 million gallons into the Arkansas River (August 2026); Fort Lauderdale spilled about 211 million gallons from main breaks (2019–20).
- **Aging pipes, getting worse.** ASCE's 2025 Infrastructure Report Card gave wastewater a **D+**, reporting collection-system failures rising (from 2 to 3.3 per 100 miles) while pipe renewal slows. EPA's 2022 Needs Survey puts sewer conveyance needs (repair plus new pipes) at about \$151 billion.
- **Repairs were delayed.** DC Water sought fast-track approval to work in the area in 2018; the National Park Service required further environmental review, and a permit came only after the collapse (Feb. 28, 2026). The cause of the collapse is still under investigation, so present the delay as a documented problem, not the proven cause.

STATUS-QUO GOALS (COMP. ADVANTAGE OPTION)

- CWA §101(a)(2): swimmable, fishable waters.
- CWA §101(a)(1): the national goal of eliminating the discharge of pollutants.

PLAN

AGENCY

EPA under CWA §402, with an interagency agreement covering the Interior Department, Forest Service, and Army Corps for the access provision.

MANDATES

1. **National sewer overflow rule.** Within 18 months, every NPDES-permitted municipal sewer system (and satellite systems feeding it) must run a Capacity, Management, Operation and Maintenance (CMOM) program: an asset inventory, a risk-based condition assessment, and inspection of large interceptors and force mains at least every 10 years (more often for high-consequence segments), with enforceable repair schedules.
2. **Prohibit unpermitted sewer overflows**, with a defense only for extraordinary natural events a sound maintenance program could not have prevented.
3. **Compliance access.** When a permittee documents that a repair on federal land is needed to meet its overflow prohibition, the land agency must decide on access within 60 days using existing emergency or categorical pathways, with mitigation conditions.
4. **Public reporting** of overflows and inspection results.

ENFORCEMENT

NPDES permit conditions; authorized states adopt within 2 years with EPA backstop; citizen suits.

FUNDING

Normal means. Systems under 10,000 people phase in over 5 years; Clean Water SRF priority for repairs a CMOM assessment identifies.

ADVANTAGES

Prevention beats cleanup. California's statewide sewer order is followed by a drop in reported spills from about 6,500 (2008) to about 3,050 (2021). Atlanta's sewer program is credited with about a 97% cut in overflow volume and 75% fewer spills since 2004. Knoxville now inspects 100% of its system on a 12-year cycle.

Swimmable, fishable rivers (§101(a)(2)). Fewer overflows mean fewer beach and river closures and fewer illnesses from sewage contact.

No more permitting paralysis. A 60-day access decision keeps environmental review in place but ends years-long waits like the one DC Water faced for access to the Potomac pipe.

INHERENCY

There is **no national sewer overflow rule**. EPA's Clinton-era SSO/CMOM rule was released in January 2001 but never published or finalized. Today maintenance programs are imposed case by case through consent decrees, **after** a system fails (Atlanta's decree dates to 1999 and runs to 2027). The Potomac response was a lawsuit, a hearing, and a funding request, not a standard; no bill or EPA rule was found as of Oct. 9, 2026 (check Congress.gov). State coverage is a patchwork (California and North Carolina have statewide programs; others, such as Ohio and Georgia, lean on enforcement orders).

TOPICALITY

Low. Municipal sewage is non-agricultural wastewater; an overflow reaching a river is a discharge into navigable waters (DOJ itself charged DC Water with discharging sewage "without authorization"); a maintenance program is an NPDES permit condition. The **federal-land access** piece is the one risk: write it as part of the NPDES rule (triggered by a permittee's overflow obligation), and be ready to drop it if a judge signals concern; the case stands on the CMOM mandate alone.

SOLVENCY

California and Atlanta report large drops in spills after requiring systematic maintenance, and the federal government reportedly seeks an "Enhanced Operations and Maintenance Plan" for DC Water, the same remedy the plan applies nationwide before failure. Be honest that no study isolates CMOM alone; Atlanta's results also reflect heavy construction spending.

LIKELY NEGATIVE ATTACKS & QUICK ANSWERS

Neg says...	Aff answers...
DA: Ratepayer costs / unfunded mandate.	The \$630 billion need exists with or without the rule; the plan changes <i>when</i> money is spent (before failure). Small-system phase-ins and SRF priority are built in. Emergency repair, cleanup, and lawsuits cost more.
"The Potomac pipe was inspected and rated mid-range (3 of 5), so CMOM wouldn't have helped."	The most dangerous attack. Concede inspections happened; argue what failed was the lack of enforceable repair deadlines for risky segments and years of access delay, which the plan fixes.
"DC Water is already fixing it."	Repairs in the area were stalled for years before the collapse, and the case is about the tens of thousands of overflows a year nationwide, not one utility.
"Consent decrees already handle bad actors."	Decrees are reactive and slow (Atlanta 1999 to 2027) and only reach systems that have already failed.
Federalism (§101(b)).	The rule is a floor inside the state-run permit system; California and North Carolina already comply; the Potomac crosses D.C., Maryland, Virginia, and federal land.

Neg says...	Aff answers...
Environmental DA on the access plank.	The plan sets a decision deadline, not a waiver; endangered-species and historic-site laws still apply.

STARTER EVIDENCE TRAIL

- **EPA**, Potomac Interceptor Sewage Discharge page (2026). [epa.gov](https://www.epa.gov)
- **U.S. Department of Justice**, “Justice Department Files Clean Water Act Complaint Against DC Water” (Apr. 20, 2026). [justice.gov](https://www.justice.gov)
- **Tom Neltner**, testimony to House Energy & Commerce Oversight Subcommittee (May 20, 2026), restating EPA’s SSO estimates. [congress.gov](https://www.congress.gov) PDF
- **Senate Report 111-172** (2010), noting EPA’s draft SSO rule was never finalized. [govinfo.gov](https://www.govinfo.gov)
- **California State Water Resources Control Board**, press release on the 2022 statewide sewer order (Jan. 2023). [waterboards.ca.gov](https://www.waterboards.ca.gov)
- **EPA**, Knoxville Utilities Board consent decree closeout (2022–23). [epa.gov](https://www.epa.gov)
- **ASCE**, 2025 Report Card for America’s Infrastructure, wastewater (D+). [infrastructurereportcard.org](https://www.infrastructurereportcard.org)
- **WJLA / Washington Post**, report on the Potomac repair permitting timeline (2026). [wjla.com](https://www.wjla.com)
- **Use carefully:** the “8 years without NPS permits” claim comes from an advocacy group (Potomac Conservancy); cite the documented 2018–2022 timeline instead.

Affordable Clean Water for Hometowns

Cities are under federal orders to spend billions on sewer overflows, and families' sewer bills are rising faster than inflation. Give every struggling city a legal right to a public-health-first cleanup plan with enforceable milestones: the same clean water, in a smarter order, at a price residents can pay.

Topicality: **Low-moderate risk**Inherency: **Moderate**Significance: **High**Solvency: **Moderate**Lay appeal: **Very high**Watch: **EPA could finalize revised affordability guidance**

WHY IT MADE THE TOP TEN

It is the best “deregulatory-friendly” case that still promises cleaner water, which makes it hard for a negative to paint as either radical or toothless. Every parent judge pays a sewer bill. It accepts all three statutory goal clusters (§101(a), (b), (f)) instead of tripping over them, and it costs the federal government nothing.

STATUS QUO (HARMS TO HIGHLIGHT UNDER EACH ADVANTAGE)

- **Bills rising faster than inflation.** Bluefield Research’s 50-city index found combined water and sewer bills rose 5.1% in 2025 (a five-year high) and 24.2% over five years; sewer is about 57% of the bill (March 2026).
- **Households priced out.** Mack and Wrase (PLOS ONE, 2017) found about 11.9% of U.S. households (about 14 million) already paid more than EPA’s 4.5%-of-income affordability benchmark for water and sewer, and projected that share could triple if rates kept rising at the 2010–14 pace. Say “projected,” not “one-third are priced out.”
- **Federal orders, local bills.** EPA has entered about 91 municipal Clean Water Act consent decrees since 1998, totaling about \$51.6 billion (Bluefield). State and local governments paid about 92% of public wastewater spending in 2023 (CRS). Examples: Kansas City had planned 8–13% annual sewer increases; Akron has spent over \$1.3 million helping residents who cannot pay; an EPA advisory board report described South Bend’s \$713 million plan as economically unfeasible for its households.
- **Slow, unmeasured progress.** GAO (2023) found EPA has no performance goals to track whether sewer-overflow controls are improving water quality, and decree renegotiations take years (Springfield, Missouri’s plan took nearly a decade).

STATUS-QUO GOALS (COMP. ADVANTAGE OPTION)

- CWA §101(a): restore and maintain the integrity of the Nation’s waters; fishable, swimmable water.
- CWA §101(b): preserve the “primary responsibilities and rights” of states (and, through them, local governments) to prevent and reduce pollution.
- CWA §101(f): “the best use of available manpower and funds, so as to prevent needless duplication and unnecessary delays at all levels of government” (confirm exact wording at 33 U.S.C. §1251(f) before reading aloud).

PLAN

AGENCY

Congress amends CWA §§402(q), 402(s), and 309; EPA and DOJ implement; authorized states apply the same rules.

MANDATES

1. **Binding affordability test.** Within 18 months, EPA issues a **rule** (replacing non-binding guidance) for the Financial Capability Assessment used to set compliance schedules in permits and consent decrees. It must count total household sewer cost, lowest-quintile income, local poverty prevalence, and regional cost of living.
2. **Right to an integrated plan.** A city that exceeds the burden threshold is entitled, on request, to an integrated plan under §402(s) (“may” becomes “shall”). The plan must (a) do the highest public-health projects first (swimming areas, drinking-water intakes, overburdened neighborhoods), (b) finish within 25 years, (c) be reviewed every 5 years, and (d) meet water quality standards at the end date.
3. **Floors never waived.** Dry-weather overflows, imminent health hazards, secondary treatment, and the nine minimum controls for combined sewers apply immediately.
4. **Green infrastructure credit.** Monitored green infrastructure counts toward required overflow capacity after three years of verified performance; any shortfall triggers a conventional (“gray”) backstop within 24 months.
5. **Existing decrees.** On motion, courts modify existing decrees on the same terms unless the United States shows the change reduces public-health protection.

ENFORCEMENT

Plan milestones become enforceable permit conditions, posted on a public dashboard. A missed milestone restores the original schedule and penalties; citizen suits (§505) are preserved.

FUNDING

No new appropriations. The plan changes the order and timing of required spending, not who pays.

ADVANTAGES

More cleanup per dollar (§101(a) and (f)). Health-first sequencing gets the most dangerous overflows fixed first instead of sinking early money into the most expensive tunnel. Lima, Ohio's 2014 decree, the first built on the integrated-planning framework, raised wet-weather treatment capacity from 53 to 70 million gallons a day and eliminated untreated bypasses by 2018 (EPA profile). Onondaga County reached its 95% overflow-capture goal years early with a mix of green and conventional projects (EPA case study; the lake's recovery also reflects a separate industrial cleanup).

Hometown control without needless delay (§101(b) and (f)). A statutory right to a plan replaces years of case-by-case negotiation. Kansas City's amended decree added firm overflow-volume performance targets while the city held rate increases to about 6% a year instead of the 8–13% once planned (the final deadline also moved from 2035 to 2040). Cities keep rates within what residents can pay, so projects are sustained rather than abandoned.

INHERENCY

Integrated planning under §402(s) (2019) is **voluntary and discretionary**: EPA calls it voluntary, and CRS says cities may “voluntarily seek” modification. EPA's 2021 report profiled only 13 municipalities, and no one tracks a national total. The affordability test is **guidance**, not law; it has been rewritten repeatedly (1997, 2014, 2023, 2024), and EPA asked for comment on yet another revision in March 2026 with no final version found. Guidance can be rewritten by any administration, so statutory text is more durable, especially after *Loper Bright* (2024) reduced court deference to agency interpretations. Do **not** claim “no mechanism exists”; claim “permission is not a right.”

TOPICALITY

Low to moderate. City sewage is non-agricultural wastewater, and compliance schedules sit inside NPDES permits (40 CFR 122.47) and the §402(q) combined-sewer mandate, so changing them reforms the regulation of discharges. Expect “this is funding or litigation, not regulation”: answer that the plan changes binding permit and decree terms, appropriates nothing, and amends the discharge-control sections of the Act. Keep stand-alone municipal stormwater systems out of the plan.

SOLVENCY

Cities that have used integrated planning, flexible schedules, or green-infrastructure decrees (Lima, Kansas City, Onondaga County, Philadelphia) report real overflow reductions or lower costs (though Kansas City's deadline moved later and Philadelphia's costs are disputed), and the plan makes that approach available by right, with enforceable milestones and a gray backstop. Be honest: there is no peer-reviewed comparison of integrated-plan cities with others, and the savings figures come from EPA and the cities. Say “EPA and the cities report,” not “studies prove.”

LIKELY NEGATIVE ATTACKS & QUICK ANSWERS

Neg says...	Aff answers...
“This delays cleanup and violates §101(a).”	Unaffordable schedules already slip (Kansas City, Pittsburgh, Morgantown were all extended). The plan puts health projects first, caps at 25 years, and restores penalties if a city misses a milestone.
“EPA already allows flexibility under §402(s).”	Yes, case by case and only if EPA agrees. The plan changes “may” to “shall,” makes the affordability test binding, and makes milestones enforceable.
“EPA’s 2026 guidance revision will fix it.”	It is a request for comment with no final version, it would still be non-binding guidance, and it has been rewritten repeatedly.
Environmental justice: “Overflows hit poor neighborhoods.”	The plan ranks overburdened neighborhoods first and uses poverty-based metrics; unaffordable bills also fall hardest on the poor. (Prepare a source on overflow-outfall demographics.)
“Green infrastructure fails” (Philadelphia cost overruns).	Philadelphia met its required Greened Acre target. The cost claims come from anonymous staff in one 2024 article. Only verified green infrastructure counts, with a gray backstop.
Counterplan: “Fund the revolving loan funds instead.”	Money alone never closes a \$630 billion need; the FY2027 budget request cuts the funds. The plan costs nothing and works at any funding level.
Goals trap: “§101(a)(1) says eliminate all discharges.”	That 1985 goal is aspirational and unmet under any schedule; the plan advances it faster per dollar.

STARTER EVIDENCE TRAIL

- **Bluefield Research** via WaterOnline, “National Water and Sewer Bills Rise, Outpacing Inflation” (Mar. 31, 2026). wateronline.com
- **Mack & Wrase**, *PLOS ONE* 12(1): e0169488 (2017), water affordability nationwide. journals.plos.org
- **GAO**, GAO-23-105285 (2023), CSO controls and EPA performance tracking. gao.gov
- **EPA**, Report to Congress on Integrated Plans and Municipality Profiles (2021); Lima profile (July 2021). epa.gov
- **KC Water**, Third Amended Consent Decree (Mar. 3, 2021). kcsmartsewer.us
- **EPA**, FCA Guidance Request for Comment, 91 Fed. Reg. 14694 (Mar. 26, 2026). federalregister.gov
- **CRS**, R44223 (integrated planning) and R48565 (wastewater funding shares). congress.gov
- **Neg card to prepare for:** Circle of Blue, “Billions Over Budget? Questions Swirl Over Philly’s Green Fix for Sewers” (2024). circleofblue.org
- **Check first:** EPA’s 2023 FCA thresholds (to set the plan’s burden test), the EFAB report’s South Bend figure, and whether EPA has finalized the 2026 revision.

Trust but Verify

The Clean Water Act runs on the honor system: polluters test their own wastewater and mail in the results. Make the numbers trustworthy by assigning independent labs, auditing samples, posting data publicly, and escalating automatically against chronic violators.

Topicality: **Low–moderate risk**Inherency: **Strong**Significance: **Moderate–high**Solvency: **Moderate**Lay appeal: **High**DA exposure: **Moderate (small-town cost)**

WHY IT MADE THE TOP TEN

It reaches every permit on the topic, so it is hard to call trivial, and it has a gripping 2026 story: a Texas lab CEO pleaded guilty to faking sewage test results for about three years. “Trust but verify” is a Reagan phrase many judges will recognize, and the plan uses compliance orders first and penalties only for chronic violators, which blunts “anti-business” attacks.

HARMS / PROBLEM

- **Faked results keep turning up.** In June 2026 a Conroe, Texas laboratory CEO and others pleaded guilty in federal court to altering wastewater test results for about three years, hiding ammonia, *E. coli*, and phosphorus violations from EPA and Texas regulators. Earlier prosecutions follow the same pattern: a Jackson, Mississippi lab owner got 40 months for fabricating results (2013); West Virginia lab employees backdated coal-mine water samples; plant operators in Indiana, Tennessee, and Pennsylvania falsified reports. At least three of these cases involved **contract labs**, not just the polluter’s own staff.
- **EPA could not vouch for its own data.** GAO (GAO-21-290, 2021) found that EPA estimated nearly 11,000 facilities significantly exceeded their permit limits in 2018, that only about 70% of permitted facilities had complete enough data for EPA to track compliance, and that EPA had no plan to assess the overall accuracy of the data.
- **Chronic violators persist.** EPA reported that about 9% of individually permitted facilities (its pages say 9.3% and 9.0%) were in “significant noncompliance” in FY2023, down from 20.3% of about 46,000 facilities in FY2018; that is still roughly 4,000 facilities. In its FY2024–27 enforcement priorities (August 2023), EPA moved this effort from a national priority to a “core” program, and no newer headline rate was found.
- **Enforcement is shrinking.** The Environmental Integrity Project counted only 16 DOJ civil environmental complaints in the administration’s first year (about 76% fewer than the prior administration’s first year), and PEER counted 4 Clean Water Act consent decrees in 2025–26 versus 18 in 2021–22. DOJ’s environment division lost at least 140 of about 400 lawyers.

STATUS-QUO GOALS (COMP. ADVANTAGE OPTION)

- CWA §101(a): restore and maintain the integrity of the Nation’s waters.
- CWA §101(e): public participation in enforcement shall be “provided for, encouraged, and assisted” (confirm wording).

PLAN

AGENCY

Congress amends CWA §308 (monitoring and reporting) and §309 (enforcement); EPA and authorized states implement.

MANDATES

1. **Verified monitoring.** Within 3 years, each major NPDES discharger (industrial and municipal) uses continuous, tamper-evident monitoring sent automatically to EPA for flow, pH, temperature, and any other parameter with an EPA-approved continuous method. All other samples go to an accredited lab **assigned by the state or EPA** (not chosen or paid by the polluter), with random split-sample audits each year.
2. **Public data.** Results are posted on EPA’s ECHO website within 24 hours (continuous data) or the next business day (lab data), with automatic exceedance flags.
3. **Escalation ladder.** Two consecutive quarters of significant noncompliance trigger a mandatory compliance order with public milestones; four quarters trigger a mandatory minimum penalty, modeled on California’s Water Code §13385. The trigger is automatic from the reported data; it does not wait for a discretionary EPA “finding.” If an authorized state has not acted within 30 days of EPA notice (the clock already in CWA §309(a)(1)), EPA must issue the order.
4. **Falsification.** Verified falsification triggers mandatory referral to DOJ (referral, not mandatory prosecution).

ENFORCEMENT

EPA and authorized states; citizen suits; GAO audit of data accuracy at year 3.

FUNDING

Penalties fund a Monitoring Assistance Fund that pays assigned-lab and sensor costs for communities under 10,000 people, who also get a 5-year phase-in and may convert penalties into compliance projects.

ADVANTAGES

Honest numbers. The Duflo, Greenstone, Pande, and Ryan experiment in India (*Quarterly Journal of Economics*, 2013) found that when polluters chose and paid their own auditors, reported pollution clustered just under the legal limit; after the audit system was restructured, auditors reported more truthfully and plants cut pollution. The plan copies the fix: the regulator, not the polluter, picks and pays the lab.

Chronic violators clean up. Economists studying the Clean Air Act (Blundell, Gowrisankaran, and Langer, *American Economic Review*, 2020) estimated that removing escalating enforcement would raise pollution damages by 164% at the same fine levels. A predictable ladder makes the next step credible. California's state water board reports fewer violations after mandatory minimum penalties began (an agency assessment, not a controlled study).

Communities can see their water. Public, near-real-time data lets neighbors, reporters, and downstream towns spot problems between inspections. England went from monitoring 7% of storm overflows (2010) to 100% (2023) and publishes the data every year.

INHERENCY

The Act relies on **self-monitoring**: facilities (or labs they hire and pay) test their own discharges and report the results. Nothing requires independent lab assignment, split-sample audits, or automatic escalation for repeat violators; enforcement is discretionary case by case. Current policy runs the other way: significant noncompliance is no longer a national enforcement priority (since the FY2024–27 cycle), an OECA memo (March 2025) told staff to avoid enforcement that would shut down energy production absent an imminent threat, and a December 2025 “compliance first” memo emphasizes assistance over penalties. Electronic reporting (phase 2 due Dec. 2025, state extensions to 2028) moves paper online but does not verify any number.

TOPICALITY

Low to moderate. Monitoring and reporting requirements are written into every NPDES permit, so they are part of “regulation of ... discharge.” Expect “enforcement is not regulation”: answer that the plan changes the binding permit conditions (\$308) and that “policy or policies for the regulation” is broad enough to include the rules that make limits operate. Bring a dictionary card for “regulate” (Merriam-Webster’s entry reads roughly “to govern or direct according to rule”; copy the exact wording) for the 2AC.

SOLVENCY

Fraud happens at the human step where someone types or alters a number. Automatic continuous transmission removes that step for sensor-measured parameters; regulator-assigned labs plus split-sample audits make it much harder for lab results. Escalating enforcement is backed by economic evidence (Blundell et al.), and California’s mandatory penalties show the model can run at state scale. Be honest: these studies come from air pollution and from India, so the transfer to U.S. water permits is an argument, not a proven result.

LIKELY NEGATIVE ATTACKS & QUICK ANSWERS

Neg says...	Aff answers...
“Self-reported data is mostly accurate” (Shimshack study).	Concede it: a Tulane economist’s statistical tests (preliminary) found no strong evidence of widespread strategic misreporting. Then pivot: GAO found in 2021 that EPA had no plan to assess data accuracy (a promised accuracy dashboard had not appeared as of 2024), and prosecutors keep finding fraud. If cheating is rare, verification is cheap insurance. Never claim “everyone lies.”
DA: Costs to small towns.	Phase-in, a fund paid by violators’ penalties, and penalty-to-project conversion. Penalties apply only after a full year of chronic violations.
“Sensors are unreliable.”	Continuous monitoring applies only where EPA has approved a continuous method; lab sampling stays for everything else. (Find sensor cost and accuracy data before the round; it is the weakest link.)
“Compliance assistance works better than penalties.”	The ladder starts with a compliance order; penalties come only after four quarters. Without a credible next step, chronic violators persist.
Federalism (§101(b)).	States act first; EPA steps in only after state inaction, using the 30-day clock §309(a)(1) already contains.
Minor repair: “Hire more inspectors.”	Inspections are snapshots; the Conroe fraud ran about three years between them. Continuous data and audits cover the gaps across about 46,000 facilities.

STARTER EVIDENCE TRAIL

- **U.S. Attorney, S.D. Texas**, press release on guilty pleas for falsifying wastewater test results (June 2026). [justice.gov](https://www.justice.gov)
- **GAO**, GAO-21-290, *Clean Water Act: EPA Needs to Better Assess and Disclose Quality of Compliance and Enforcement Data* (July 2021). [gao.gov](https://www.gao.gov)
- **EPA**, National Enforcement and Compliance Initiative: Reducing Significant Non-Compliance with NPDES Permits. [epa.gov](https://www.epa.gov)
- **Duflo, Greenstone, Pande & Ryan**, “Truth-telling by Third-party Auditors,” *QJE* (2013). hks.harvard.edu
- **Blundell, Gowrisankaran & Langer**, “Escalation of Scrutiny,” *AER* (2020). aeweb.org
- **DOJ**, Tennie White sentencing (40 months, 2013). [justice.gov](https://www.justice.gov)
- **UK Government**, “Storm overflows monitoring hits 100% target” (Jan. 2024). [gov.uk](https://www.gov.uk)
- **California State Water Board**, Water Code §13385(o) mandatory minimum penalty reports. [waterboards.ca.gov](https://www.waterboards.ca.gov)

- **Neg card to know:** Shimshack, EPA/RFF seminar on accuracy of self-reported CWA data. [EPA archive](#)
- **Check first:** the EIP and PEER enforcement counts (secondary reports), the Conroe sentencing outcome, and the text of CWA §309(a)(1), which already requires EPA to act 30 days after notifying a state of a violation EPA “finds”; present the plan as making that duty automatic and public.

Zero Pellet Discharge

Plastic plants spill lentil-sized “nurdles” by the millions, and they wash into bays, carry toxic chemicals, and get eaten by birds, fish, and turtles. No federal discharge standard for plastics plants addresses them. Add a zero-pellet-discharge rule to the plastics plants’ effluent guidelines.

Topicality: **Low risk (moderate on stormwater)**Inherency: **Strong**Significance: **Moderate**Solvency: **Moderate–strong**Lay appeal: **Very high (bring a bag of pellets)**DA exposure: **Low**

WHY IT MADE THE TOP TEN

It is narrow, concrete, and cheap: the fix is basic containment (screens, sealed transfers, cleanup), and Europe’s plastics industry accepted binding pellet rules in 2025. It has a 2026 hook (over a million pellets counted, nearly all in Texas) and a ready-made plan modeled on bills or amendments offered in three Congresses. A narrow plan also gives the negative little to attack beyond “small harm.”

HARMS / PROBLEM

- **Over a million pellets in one count.** The 2026 International Plastic Pellet Count (PIRG, Waterkeeper Alliance, and partners, June 2026) found 1,073,433 pellets, nearly all of them in Texas, mostly in the Victoria Barge Canal; volunteers collected about **715,000 pellets in 10 minutes** near Dow’s Seadrift plant. The 2025 count found 49,256.
- **Repeat offenders.** Formosa Plastics paid a record \$50 million settlement (2019) after citizens collected millions of pellets from Lavaca Bay. Frontier Logistics settled a Charleston pellet suit in 2021 and was named again in new notices in May 2026 (notices are allegations, not findings). In 2026 Dow asked Texas to change its permit so it could legally discharge pellets, calling the “trace amounts” limit vague.
- **Toxic sponges.** Research on beached pellets (International Pellet Watch) finds they absorb PCBs, DDT, and other persistent pollutants at roughly 100,000 to 1,000,000 times the concentration in surrounding seawater. More than 180 species are known to eat plastic debris (all debris, not only pellets).
- **Scale.** The European Parliament estimated Europe alone lost 52,140 to 184,290 tonnes of pellets in 2019. No official U.S. estimate was found, which is part of the problem.

STATUS-QUO GOALS (COMP. ADVANTAGE OPTION)

- CWA §101(a)(1): the national goal that “the discharge of pollutants into the navigable waters be eliminated.”
- CWA §101(a)(2): water quality that protects fish, shellfish, and wildlife and provides for recreation.
- CWA §101(a)(3): prohibit the discharge of toxic pollutants in toxic amounts (sub-point only; pellets are not on the statutory toxic list).

PLAN

AGENCY	Congress enacts a Plastic Pellet Free Waters Act directing EPA to amend the plastics effluent guidelines (40 CFR Parts 414 and 463) within 12 months.
MANDATES	1. Prohibition. No discharge of plastic pellets or other pre-production plastic (powders, flakes, regrind) in process wastewater or industrial stormwater from any NPDES-permitted facility that makes, handles, packages, or transports pellets. Compliance within 24 months. 2. Containment. Capture screens or filters at outfalls and drains, sealed transfer systems, spill kits and cleanup procedures, and employee training. 3. Monitoring. Routine outfall inspections and pellet-count monitoring using a defined method; a violation is a pellet reaching an outfall without capture (a clear standard, not a vague “trace” test). 4. Reporting. Pellet spills reported within 24 hours; annual public release of inspection and spill data.
ENFORCEMENT	NPDES permit conditions (§402), penalties (§309), and citizen suits (§505).
FUNDING	Normal EPA appropriations; facilities pay their own compliance costs.

ADVANTAGES

Wildlife and fisheries (§101(a)(2)). Birds, fish, and turtles mistake pellets for food, and pellets carry concentrated toxic chemicals into the food web. Stopping pellets at the outfall protects Texas bays, Gulf beaches, and Charleston’s marshes, where pellets are being found today.

A real step toward zero discharge (§101(a)(1)). Few pollutants can practically reach zero; pellets can, because they are solid and can be captured with screens and housekeeping. The Formosa settlement already imposed a zero-discharge standard with monitoring and per-discharge payments.

Clear rules for good actors. A national standard rewards companies that already contain pellets and ends plant-by-plant permit fights. When the EU adopted binding pellet rules in 2025, industry groups PlasticsEurope and BDE welcomed the deal.

INHERENCY

No pellet limit has been found in the federal effluent guidelines for plastics plants (Parts 414 and 463; Part 463 dates to 1984), and bills or amendments to add one have been offered in three Congresses without passing. The 2026 versions (H.R. 7543, Rep. Levin, 48 cosponsors; S. 4181, Sen. Durbin) sit in committee. The only federal pellet language is a best-practices clause in EPA's industrial stormwater general permit, which applies directly only where EPA is the permitting authority, was challenged as too weak, and lapsed in February 2026 (existing coverage continues administratively; no replacement found). Industry's Operation Clean Sweep is voluntary; a former industry official told NPR its success was "measured really about who was participating, not what the results were." State laws are a patchwork (California 2007; Colorado effective Aug. 2027; Illinois signed Aug. 2026), and Texas, Louisiana, and South Carolina, the hotspots, have none found.

TOPICALITY

Low for process wastewater; moderate for stormwater. Plastics manufacturing is non-agricultural, the plan amends industrial effluent guidelines, and pellets reach navigable bays. The negative may argue stormwater is not "wastewater." Lead with process wastewater (clearly topical) and treat industrial stormwater as a severable second clause; define wastewater as "water discharged from an industrial facility through a point source, including process wastewater and stormwater contaminated by industrial activity."

SOLVENCY

An effluent guideline goes into every permit nationwide and gives citizens a clear standard to enforce. The Formosa decree shows a zero-discharge standard with monitoring can be written and enforced; the EU regulation (risk plans, third-party certification for large handlers, phase-in starting about 24 months after adoption) shows industry will accept binding rules. Be careful: no U.S. study measures how much a rule would cut, and post-settlement Formosa results were not found. Say "should sharply reduce," not "eliminate."

LIKELY NEGATIVE ATTACKS & QUICK ANSWERS

Neg says...	Aff answers...
"Operation Clean Sweep already handles it."	Voluntary, with no required public data (NPR); Frontier and Dow show members still lose pellets. If most companies already comply, the plan costs them little.
"States solve (California, Illinois, Colorado)."	Illinois has not written rules, Colorado starts in 2027, and no pellet law was found for the Texas, Louisiana, and South Carolina hotspots. A federal floor lets states go further.

Neg says...	Aff answers...
“Most pellet loss is from ships and rail spills.”	Concede ship spills are outside the plan. The evidence here is facility outfalls and canals: Formosa, the Dow Seadrift canal, Charleston logistics firms. The plan covers handling and packaging sites.
DA: Costs and jobs.	No cost study exists for either side; the measures are basic containment; EU industry accepted binding rules; lawsuits like Formosa (\$50 million) cost far more.
“Small harm.”	Over a million pellets in one count; toxic concentration up to a million-fold; and §101(a)(1) says discharges should be eliminated, not tolerated. Stay on wildlife; do not claim proven human-health harm.
Topicality: stormwater is not wastewater.	Process-wastewater prohibition alone is topical and carries the harms; the pellet bills themselves treat both inside the same NPDES permits.

STARTER EVIDENCE TRAIL

- **PIRG / Waterkeeper Alliance et al.**, *2026 International Plastic Pellet Count Report* (June 2026). pirg.org
- **Houston Public Media**, “Dow asks Texas to legalize plastic pollution from its Seadrift complex” (Mar. 2, 2026). houstonpublicmedia.org
- **NPR**, “Big Oil Evaded Regulation And Plastic Pellets Kept Spilling” (Dec. 22, 2020). npr.org
- **Texas RioGrande Legal Aid**, Formosa settlement release (Dec. 2019). trla.org
- **Congress.gov**, H.R. 7543 (119th Congress) and S. 4181. congress.gov
- **EU**, Regulation (EU) 2025/2365 on preventing plastic pellet losses. eur-lex.europa.eu
- **International Pellet Watch** review (NSF Public Access Repository), pellets as carriers of persistent pollutants. par.nsf.gov
- **Southern Environmental Law Center**, Charleston Harbor notices (May 2026). selc.org
- **Check first:** the NPR quote from the former industry official (read the original); read eCFR Parts 414 and 463 for any “pellet” language; the status of EPA’s replacement stormwater general permit; and the Texas v. Dow case status.

Finish the Coal Plant Wastewater Cleanup

Congressional researchers report that coal plants account for the largest share of toxic water pollution among regulated industries. EPA wrote a fix in 2024, then pushed the deadline from 2029 to 2034. Restore the 2029 deadline, with a narrow, public, grid-operator-certified extension for any plant truly needed to keep the lights on.

Topicality: **Low risk**Inherency: **Very strong**Significance: **High**Solvency: **Strong**Lay appeal: **Moderate**DA exposure: **High (energy/reliability), answered in the plan**

WHY IT MADE THE TOP TEN

The inherency is written in the Federal Register: a December 2025 rule delayed compliance five years, and a May 2026 proposal would roll back more. EPA's own numbers do the significance work (hundreds of millions of pounds of pollutants a year; billions in health benefits; under \$3.50 a year on a household bill). The built-in reliability valve takes the negative's best disadvantage away before the 1NC.

STATUS QUO (HARMS TO HIGHLIGHT UNDER EACH ADVANTAGE)

- **The biggest industrial source of toxic water pollution.** CRS reports that steam electric power plants account for the largest share of toxic pollutants discharged to surface water among Clean Water Act industrial categories (confirm wording). Their wastewater carries mercury, arsenic, selenium, nickel, and bromide.
- **EPA's own numbers.** EPA's 2024 rule fact sheet estimated the rule would cut about 660–672 million pounds of pollutants a year, deliver about \$3.2 billion a year in public-health benefits, and raise the average household electric bill by less than \$3.50 a year. EPA listed cancer, other illnesses, and lower IQ in children among the risks.
- **Delay is the policy.** The December 2025 Deadline Extensions Rule (90 Fed. Reg. 61328) moved the Dec. 31, 2029 compliance deadlines for scrubber (FGD) wastewater and bottom ash transport water (zero discharge) and for leachate limits to Dec. 31, 2034. A May 2026 proposal would rescind treatment requirements for unmanaged leachate. An EPA “no action assurance” memo also shields certain violations through 2026.
- **What the toxics do (color, not the core harm).** Ash-pond failures such as Kingston, Tennessee (2008) and Dan River, North Carolina (2014; about 39,000 tons of ash into the river; verify both with EPA pages) show what these wastes do when they reach water. Those were mainly impoundment failures governed by a different (RCRA) rule, so use them only as illustration.

STATUS-QUO GOALS (COMP. ADVANTAGE OPTION)

- CWA §101(a)(3): “the discharge of toxic pollutants in toxic amounts be prohibited.”
- CWA §101(a): restore and maintain the chemical, physical, and biological integrity of the Nation’s waters.
- Reliability is **not** an advantage here (it is not a §101 goal); present it as the answer to the main disadvantage.

PLAN

AGENCY EPA, consulting the Department of Energy and FERC.

MANDATES

1. **Restore the 2024 standards for direct dischargers.** Rescind the Deadline Extensions Rule and withdraw the May 2026 leachate proposal (or rescind any final rule issued from it), reinstating 40 CFR Part 423 as promulgated in 2024, with a latest compliance date of Dec. 31, 2029. Proposed rule within 90 days; final within 12 months.
2. **Reliability extension.** A permitting authority may grant a plant-specific extension of up to 2 years (renewable once) **only if** the regional grid operator or reliability coordinator certifies in writing, with a published reliability study, that the plant is needed and no practical alternative exists; the owner adopts interim treatment and a dated compliance schedule; and the certification and monitoring data are posted publicly and updated quarterly.
3. **No more blanket waivers.** EPA shall not issue, renew, or extend any no-action assurance or similar enforcement-discretion policy for these limits.
4. Plants that commit to stop burning coal by the end of 2034 keep the existing less-stringent subcategory.

ENFORCEMENT NPDES permits; EPA and state enforcement; citizen suits.

FUNDING Existing EPA appropriations; plant owners pay compliance costs.

ADVANTAGES

Toxics out of rivers sooner (§101(a)(3)). Restoring the 2029 date brings forward EPA’s own estimated cut of about 660–672 million pounds of pollutants a year, five years earlier than the status quo, using technologies EPA found demonstrated and economically achievable in 2024.

A clear national baseline (§101(a)). Instead of a blanket delay plus case-by-case site-specific dates and leachate rollbacks, every plant faces the same standard, and any exception is justified by the grid operator and posted for the public to see.

INHERENCY

The status quo is moving backward and the paper trail is official. The December 2025 rule set 2034 as the default deadline for every plant and added site-specific alternative dates on top; the May 2026 proposal would rescind leachate treatment (final expected by end of 2026); the no-action assurance relieves enforcement. The rule has been rewritten in 2015, 2020, 2024, and 2025. Lawsuits against the delay are consolidated in the Second Circuit with no ruling found, and utilities' challenge to the 2024 rule in the Eighth Circuit is paused, so courts will not fix this in time.

TOPICALITY

Low. Power plant process wastewater is non-agricultural industrial wastewater discharged through NPDES permits to navigable waters (40 CFR Part 423). Cover **direct** dischargers only to avoid a pretreatment argument. If the negative says "restoring a rule is not reform," point to the new certified reliability extension, the public-reporting requirement, and the ban on blanket waivers. Keep spills and groundwater remedies out of the plan.

SOLVENCY

EPA already wrote the standards and found the technology available in 2024. The plan reinstates them, exempts plants retiring by 2034, and handles real reliability needs one plant at a time with public proof. A similar backstop existed under the Clean Air Act's mercury rule (MATS), where EPA allowed limited extra time by administrative order for units shown to be needed for reliability (verify the memo and how many units used it).

LIKELY NEGATIVE ATTACKS & QUICK ANSWERS

Neg says...	Aff answers...
DA: Blackouts and AI/data-center demand.	The reliability extension handles any plant the grid operator certifies as needed. EPA's own stated worry (as reported by POWER magazine) was plants still needed for reliability; the plan deals with exactly those plants and nothing else.
DA: Electricity prices.	EPA estimated less than \$3.50 a year per household. EPA says the 2034 extension saves only about \$61 million a year (Dec. 2025); its separate leachate rollback claims up to about \$1.1 billion a year, so weigh that against EPA's own \$3.2 billion a year in health benefits. DOE emergency orders keeping one Michigan coal plant open cost about \$401 million (Consumers Energy, reported 2026).
"Plants are retiring anyway."	That is why plants retiring by 2034 keep the less-stringent subcategory; the plan affects only plants choosing to keep burning coal.
Minor repair: "The status quo already has site-specific flexibility."	The flexibility runs the wrong way: a 2034 default for everyone plus more exceptions, with no certification, interim treatment, or public reporting. A repair would leave the default, the leachate rollback, and the waiver in place.

Neg says...	Aff answers...
“DOE emergency orders (§202(c)) already handle reliability.”	In September 2026 the D.C. Circuit vacated the Campbell order, calling §202(c) a “limited backstop.” Emergency orders do nothing about water and are expensive: one Michigan plant’s orders cost about \$401 million, with about \$180 million sought from ratepayers (reported).
“2029 itself violates the Act’s timing rules.”	2029 is the date EPA already chose in 2024; the plan adds no new delay.

STARTER EVIDENCE TRAIL

- **EPA**, Steam Electric 2024 Final Rule Fact Sheet (Apr. 2024). [epa.gov PDF](#)
- **Federal Register**, 89 Fed. Reg. 40198 (May 9, 2024), supplemental steam electric ELG. [federalregister.gov](#)
- **Federal Register**, 90 Fed. Reg. 61328 (Dec. 31, 2025), Deadline Extensions Rule. [federalregister.gov](#)
- **EPA**, Overview of Costs and Benefits, Deadline Extensions Final Rule (Dec. 17, 2025). [epa.gov PDF](#)
- **Federal Register**, proposed unmanaged leachate rule (May 18, 2026). [federalregister.gov](#)
- **Harvard EELP**, Power Plant Effluent Limits regulatory tracker. [eelp.law.harvard.edu](#)
- **POWER magazine**, EPA extends deadlines to 2034 citing grid reliability (2025) (neg’s best card). [powermag.com](#)
- **Utility Dive**, D.C. Circuit vacates DOE emergency order for Michigan plant (Sept. 2026). [utilitydive.com](#)
- **Check first:** whether EPA finalized the leachate rule (late 2026), the discount rate behind the \$3.2 billion benefit figure, and EIA’s planned coal retirements through 2034.

Let the Good Samaritans Work

Thousands of abandoned mines leak acid and metals into Western streams, and often no owner is left to pay. Volunteers like Trout Unlimited want to clean them up, but the Clean Water Act can make them liable for the pollution they touch. Congress opened a tiny door in 2024 (15 permits, expiring in 2031); hold it open permanently.

Topicality: **Moderate–high risk**Inherency: **Strong (statutory cap and sunset)**Significance: **Moderate**Solvency: **Moderate**Lay appeal: **Very high (volunteers vs. red tape)**DA exposure: **Very low**

WHY IT MADE THE TOP TEN

It is strongly bipartisan: the 2024 law passed the Senate unanimously, with Republican and Democratic Western senators as sponsors. It is cheap, uses volunteers and private money, and a judge who distrusts big government hears “government red tape punishes people trying to help.” The tradeoff is a real topicality risk, so the plan text must change Clean Water Act liability directly.

HARMS / PROBLEM

- **A huge legacy problem.** GAO (GAO-20-238, 2020) counted at least 140,000 abandoned hardrock mine features on federal land; about 22,500 pose or may pose environmental hazards, and agencies think about 390,000 more may be uncounted. Federal agencies spent about \$2.9 billion on them over FY2008–17, and inventorying and cleaning up even a fraction would cost more than \$10 billion.
- **Polluted headwaters.** EPA estimated in 2000 that mining has affected roughly 40% of the headwaters of Western watersheds (as cited by CRS and in congressional testimony; the original EPA document was not found, and a negative may call the estimate stale).
- **The liability trap.** Under the Clean Water Act, a volunteer who treats or improves a mine discharge can become legally responsible for it, including meeting water-quality standards and facing citizen suits. Trout Unlimited reports it could not treat the underground source at the Orphan Boy mine because of that liability. At many sites no responsible party exists to make pay.
- **What's at stake.** The 2015 Gold King Mine release sent about 3 million gallons of acid mine water into the Animas and San Juan rivers; it revived the push for Good Samaritan legislation. (Note: it was an EPA contractor's accident, not a volunteer project; see neg answers.)

STATUS-QUO GOALS (COMP. ADVANTAGE OPTION)

- CWA §101(a): restore and maintain the chemical, physical, and biological integrity of the Nation's waters.
- CWA §101(b): preserve the primary responsibilities of states (and local partners) to prevent and reduce pollution.
- CWA §101(f): best use of available manpower and funds and avoiding needless delay (confirm exact text).

PLAN

AGENCY	Congress amends the Good Samaritan Remediation of Abandoned Hardrock Mines Act of 2024 (Pub. L. 118-155) and the Clean Water Act; EPA implements.
MANDATES	1. Make it permanent. Repeal the limits of 15 remediation permits and 15 sampling permits, and repeal the 7-year sunset. 2. Clean Water Act shield (in plan text). A Good Samaritan permit holder doing the approved work is deemed in compliance with CWA §§301 and 402 and is not subject to citizen suits under §505 for the permitted work or the site's pre-existing discharge, during and after the permit. 3. Same eligibility. Only parties with no past ownership, operation, or contribution to the pollution, at sites with no viable responsible party; hardrock (non-coal) mines only. 4. Decision deadline. EPA decides each complete application within 180 days (one 60-day extension with written reasons). No automatic approval. 5. Safeguards kept. Low-risk projects only, public notice and comment, NEPA and land-agency approval on federal land, financial assurance, monitoring, no mining, and EPA power to revoke; work may not leave water quality worse than baseline.
ENFORCEMENT	EPA permit conditions, revocation, and financial assurance.
FUNDING	Normal appropriations to the existing Good Samaritan Mine Remediation Fund; volunteers and private donors fund most project work.

ADVANTAGES

Cleaner headwaters (§101(a)). Low-risk legacy discharges that nobody is legally required to fix get fixed by volunteers. The first permit (September 2026) lets Trout Unlimited remove about 790 tons of eroding tailings and waste rock at the Bodie Mine in Washington, protecting Toroda Creek. The plan lets that model scale beyond 15 sites.

Local volunteers, private dollars, less delay (§101(b) and (f)). Watershed groups, tribes, local governments, and conservation nonprofits supply labor and funding for work federal agencies cannot afford, and a decision deadline guarantees applicants an answer (a weaker point: EPA approved the first permit in about two months).

INHERENCY

The 2024 law is a **capped, expiring pilot**: 15 remediation permits and 15 sampling permits, ending about December 2031. Against about 22,500 environmental-hazard features on federal land alone, 15 permits is about 0.07%. EPA's own FY2027 budget justification says it is working toward all 15 permits by 2028; if it succeeds, the cap binds about three years before the program ends, and later volunteers return to full liability. Only EPA's first permit had issued as of September 2026. No 2025–26 bill to expand the pilot was found. Only Congress can lift a statutory cap or sunset.

TOPICALITY

Moderate to high: the biggest risk in this case. The negative will say abandoned-mine drainage often has no regulated discharger, so this is “cleanup,” not “regulation of wastewater discharge.” Answers: (1) the plan changes Clean Water Act liability and compliance status for discharges into navigable waters (§§301, 402, 505), which is why the shield is written into the plan text; (2) mine drainage is water that has passed through a mine and carries waste, and it is non-agricultural; (3) “policy or policies for the regulation of” is broad. Bring definitions of “wastewater,” “discharge,” and “regulation,” and keep coal mines out of the plan.

SOLVENCY

The permit removes the legal reason volunteers walk away, and the pilot already shows nonprofits will apply and EPA will process. Bipartisan sponsors (Heinrich, Risch, Bennet, Hickenlooper, with Republican cosponsors such as Barrasso, Crapo, and Daines) judged the approach sound. Be honest: permanence encouraging more applicants is an argument, not a measured result, and EPA's capacity is small.

LIKELY NEGATIVE ATTACKS & QUICK ANSWERS

Neg says...	Aff answers...
“Wait and see: one permit, untested pilot.”	The clock is running (about a quarter of the term gone), EPA says it is working toward all 15 permits by 2028, and the plan keeps every pilot safeguard. It only removes the expiration date and the arbitrary cap.
“Lets polluters off the hook” (moral hazard).	Anyone liable or connected is excluded, and sites with a viable responsible party do not qualify. The permit protects the volunteer, not the polluter.
“Cleanups make it worse” (Gold King).	Gold King was EPA's own contractor, not a volunteer permit. Good Samaritan projects must be low-risk, financially assured, publicly reviewed, and agency-approved.
Topicality.	See above; the plan rewrites CWA liability for these discharges.
Minor repair: “EPA can streamline by guidance.”	EPA cannot lift a statutory cap, repeal a sunset, or waive citizen-suit exposure by guidance; only Congress can.

Neg says...	Aff answers...
“Money, not liability, is the barrier.”	Both matter, but liability stopped Trout Unlimited at Orphan Boy. Financial assurance is set site by site (check EPA’s guidance for the forms it allows).

STARTER EVIDENCE TRAIL

- **Public Law 118-155**, Good Samaritan Remediation of Abandoned Hardrock Mines Act of 2024 (Dec. 17, 2024). [congress.gov](https://www.congress.gov)
- **EPA**, “Good Samaritan Act at a glance.” [epa.gov](https://www.epa.gov)
- **GAO**, GAO-20-238, *Abandoned Hardrock Mines* (Mar. 2020). [gao.gov](https://www.gao.gov)
- **EPA**, FY2027 Justification of Appropriation Estimates, Tab 13 (June 2026): working toward 15 permits by 2028. [epa.gov](https://www.epa.gov) PDF
- **Federal Register**, Good Samaritan Remediation Permit for the Bodie Mine Project (July 16, 2026). [federalregister.gov](https://www.federalregister.gov)
- **Bloomberg Law**, report on EPA approving the Bodie Mine cleanup, the first permit under the new law (Sept. 2026). [news.bloomberglaw.com](https://www.news.bloomberglaw.com)
- **Trout Unlimited**, Good Samaritan page (Orphan Boy example). [tu.org](https://www.tu.org)
- **Colorado Public Radio**, “After Gold King Spill, Focus Turns to Good Samaritan Legislation” (Oct. 21, 2015). [cpr.org](https://www.cpr.org)
- **Check first:** the statute’s exact cap, sunset, and “deemed in compliance” wording; whether a second permit has issued; and the original EPA source for the 40% headwaters claim.

Clean Cruise Ships

A large cruise ship carries thousands of people and generates tens of thousands of gallons of sewage and far more “graywater” every day. Outside Alaska, no cruise-specific treatment standards or verification requirements were found; ships fall under general vessel rules. Require advanced treatment within 3 miles of shore, verified by independent observers or real-time monitors, paid for by a passenger fee.

Topicality: **Low (stay within 3 nautical miles)**

Inherency: **Strong**

Significance: **Moderate**

Solvency: **Moderate**

Lay appeal: **High**

DA exposure: **Moderate (tourism)**

WHY IT MADE THE TOP TEN

Cruise ships are a vivid, familiar target, and the plan is cheap because most ships already have advanced treatment; the case is about **proving** it works. Fresh 2026 events give strong inherency: Alaska cut cruise pollution inspections to every two years without public notice, Carnival ships withheld discharge data from Alaska inspectors, and the Coast Guard’s vessel discharge rules are at or past their deadline.

STATUS QUO (HARMS TO HIGHLIGHT UNDER EACH ADVANTAGE)

- **Huge volumes.** EPA’s 2008 Cruise Ship Discharge Assessment estimated an average large cruise ship generates about 21,000 gallons of sewage and 170,000 gallons of graywater (sinks, showers, laundry, galleys) per day. Say “generates,” not “dumps untreated”: most sewage is treated before discharge.
- **Graywater is not clean.** An Ocean Conservancy analysis of Alaska sampling (2000–2019) found untreated graywater contains bacteria, nutrients, and solids, some at levels as high as or higher than raw sewage. EPA warned that cruise discharges can threaten shellfish beds and contaminate beaches “even when diluted.”
- **Equipment isn’t compliance.** In Alaska, the only state found with a cruise sampling program, 13 of the 28 ships registered to discharge reported at least one effluent exceedance in 2025 (fecal coliform or biochemical oxygen demand), per the state’s report; its count of violation notices differs, so check it. Friends of the Earth notes that no cruise company publicly reports the performance of its advanced treatment systems.
- **Oversight is shrinking.** Alaska defunded its onboard “Ocean Rangers” in 2019, and in July 2026 quietly cut large-ship pollution inspections from yearly to every two years. In 2025–26, Carnival ships repeatedly declined Alaska inspectors’ requests for discharge data (scrubber washwater) (Alaska Public Media, Mar. 2026).

STATUS-QUO GOALS (COMP. ADVANTAGE OPTION)

- CWA §101(a)(2): water quality that provides for the protection and propagation of fish, **shellfish**, and wildlife (“fishable”).
- CWA §101(a)(2): water quality that provides for recreation in and on the water (“swimmable”).
- CWA §101(a): restore and maintain the integrity of the Nation’s waters (optional third advantage on verifiable compliance).

PLAN

AGENCY	Congress amends CWA §312 (vessel sewage); EPA sets standards and the Coast Guard enforces.
MANDATES	1. Coverage. Passenger vessels of any flag with 250 or more overnight berths that call at or anchor in U.S. ports or navigable waters. Ships passing through without calling are excluded. 2. Standard. No discharge of sewage or graywater within 3 nautical miles (the territorial sea) or in any no-discharge zone unless treated by an advanced wastewater treatment system meeting EPA limits at least as strict as Alaska’s (EPA sets technology-based limits within 12 months; Alaska’s apply in the interim). 3. Verification. Each ship carries an independent observer while in covered waters or installs continuous electronic effluent monitoring with GPS and real-time reporting, plus random unannounced boardings. Refusing inspectors access to discharge data is a violation. Data posted publicly within 30 days. 4. VIDA deadline. The Coast Guard finalizes its Vessel Incidental Discharge Act regulations (due about now) within 180 days.
ENFORCEMENT	Coast Guard and EPA civil penalties per day per violation; criminal penalties for falsified records; citizen suits.
FUNDING	A per-passenger fee deposited in a Cruise Discharge Monitoring Fund pays for observers, labs, and enforcement (Alaska has used a per-berth fee model).

ADVANTAGES

Fishable: protect shellfish and fisheries (§101(a)(2)). Shellfish beds, fisheries, and harbors are inside 3 miles, exactly where the plan applies. Advanced treatment works when run properly: after Alaska required it, fecal coliform in treated samples generally tested below detection (Ocean Conservancy).

Swimmable: protect beaches and ports (§101(a)(2)). A measurable bacteria standard with independent verification on the largest single vessel source of wastewater near popular ports and beaches.

Trust, but verify (§101(a)). Today compliance rests on ships' own reports. Independent observers and real-time data make it checkable; when Alaska had Ocean Rangers aboard, reported exceedances were lower (Alaska DEC disputes how much the rangers caused the difference, so say "consistent with deterrence").

INHERENCY

Outside Alaska, no cruise-ship-specific federal treatment limits for sewage and graywater were found (ships fall under general vessel sewage rules and the 2013 Vessel General Permit); treated sewage is generally lawful in coastal waters outside no-discharge zones. The Clean Cruise Ship Act has been introduced in Congress since 2004 (S. 2271, 108th Congress, and later versions) and never passed; no 119th Congress version was found. EPA published national vessel-discharge standards in October 2024, but the Coast Guard's implementing rules (due about October 2026) were not found, so the 2013 Vessel General Permit still governs. Alaska cut inspections in July 2026, and Florida law overrode Key West voters' 2020 cruise limits.

TOPICALITY

Low, if the plan stays inside 3 nautical miles. Cruise sewage and graywater are non-agricultural wastewater, and the Clean Water Act defines navigable waters to include the territorial seas (the 3-mile belt). Anything beyond 3 miles invites an "extra-topical" attack. Leave scrubber washwater **out** of the plan (it is arguably an air-pollution byproduct); use it only as evidence that self-reporting fails.

SOLVENCY

About 84% of reporting cruise ships (249 of 297, per the cruise industry association CLIA, Sept. 2026) already have advanced treatment, so the plan is feasible and cheap; the missing piece is verification, which observers and real-time monitoring supply. The Baltic Sea already restricts passenger-ship sewage discharges under international rules (phased in 2019–2023), proving the same ships can comply. Be honest: ships could shift discharges past 3 miles, so stress that shellfish beds, beaches, and ports are inside 3 miles, and use GPS data to track displacement.

LIKELY NEGATIVE ATTACKS & QUICK ANSWERS

Neg says...	Aff answers...
“Industry already treats: 84% have advanced systems.”	That is why the plan is cheap. The gap is verification and the remaining ships: 13 of 28 Alaska dischargers exceeded limits in 2025, and Carnival refused to share data.
DA: Tourism and jobs.	The plan regulates discharge, not ship visits. The industry negotiated and accepted Juneau’s daily passenger caps. Coastal economies also depend on clean water and beaches.
“Foreign-flag ships and international law (innocent passage).”	The plan covers ships that call at or anchor in U.S. waters, where port-state authority is strongest, and treats all flags equally; ships merely passing through are excluded.
“Ships will just discharge beyond 3 miles.”	The biggest solvency risk; concede it. Harm is concentrated nearshore, international rules already restrict sewage farther out, and GPS-tagged data shows where discharges happen.
“Violations are falling and mostly modest” (Alaska DEC).	Concede that, then point out that Alaska just cut inspections to every two years and Carnival ships declined inspectors’ data requests. The plan makes compliance provable.
Minor repair: “Let the Coast Guard finish its VIDA rules.”	VIDA standards alone add no independent observers, no real-time monitoring, no data-access mandate, and no passenger fee, and the Coast Guard is at or past its deadline.

STARTER EVIDENCE TRAIL

- **EPA**, *Cruise Ship Discharge Assessment Report* (EPA 842-R-07-005, Dec. 2008). [archive.epa.gov PDF](#)
- **Ed White / Ocean Conservancy**, *Grey Water from Passenger Vessels in Alaska 2000–2019* (Mar. 2021). [oceanconservancy.org PDF](#)
- **Alaska DEC**, 2025 Large Commercial Passenger Vessel Report. [dec.alaska.gov PDF](#)
- **Juneau Independent**, report on the state cutting cruise ship pollution inspections to every two years (Oct. 2026). [juneauindependent.com](#)
- **Alaska Public Media / KHNS**, “For months, Carnival Corp. has withheld water pollution data from Alaska regulators” (Mar. 31, 2026). [alaskapublic.org](#)
- **Federal Register**, EPA Vessel Incidental Discharge National Standards of Performance, 89 Fed. Reg. 82074 (Oct. 9, 2024). [federalregister.gov](#)
- **Friends of the Earth**, Cruise Ship Report Card (2024). [foe.org](#)
- **Neg card to know:** CLIA environmental technologies report (Sept. 2026) via TravelPulse (84% of ships with advanced treatment). [travelpulse.com](#)
- **Check first:** whether the Coast Guard has published VIDA rules, Alaska’s exact permit limits, and whether existing law already reaches foreign-flag ships in the territorial sea.

100 More Case Ideas

These are shorter sketches, numbered 11–110 so they continue after the top ten. Each has a direction tag (stronger regulation, streamlining or deregulation, structural, or mixed) and a topicality risk tag. Some are deliberate variations of each other so you can find the version that fits your judges and evidence.

Tag	Meaning
T-risk: Low	Plainly a reform of regulation of non-agricultural wastewater discharge into navigable waters.
T-risk: Med	Defensible, but expect a T argument; prepare definitions.
T-risk: High	Run only with a strong T block, or use the idea as an advantage inside a safer case.

A. PFAS and Emerging Contaminants

Forever chemicals, drugs, plastics, and other modern pollutants that 1970s and 1980s rules never anticipated. Strong inherency right now because EPA has rescinded its PFAS permit guidance and no PFAS discharge limit has ever been finalized.

11. List PFAS as Clean Water Act “Toxic Pollutants”

Stronger regs

T-risk: Low

HARMS PFOA and PFOS are CERCLA “hazardous substances” (upheld by the D.C. Circuit, Aug. 2026) and regulated in drinking water at 4 ppt, yet they are not on the CWA §307(a) toxic pollutant list, and EPA has said it has no plans to add them (CRS).

PLAN EPA lists PFOA, PFOS, and priority PFAS under §307(a) within 12 months and sets technology-based limits and pretreatment standards on a fixed schedule.

ADVANTAGES Legal consistency across federal laws (“hazardous in the ground, legal in the river” ends); triggers national limits; puts costs on polluters.

12. Know What’s in the Pipe: PFAS in Permit Applications

Stronger regs

T-risk: Low

HARMS The NPDES application pollutant list has not been updated since 1987 and does not include PFAS; EPA’s rule to fix it keeps slipping (proposal now targeted for Jan. 2027).

PLAN EPA adds PFAS (Method 1633) to NPDES application and monitoring requirements for all major industrial and municipal dischargers within six months; results posted on ECHO.

ADVANTAGES Transparency for downstream communities; baseline data for future limits; cheap and fast.

NOTE Variant of Top Case #1. Expect “status quo solves in 2027.” Answer: EPA has missed every PFAS deadline, and monitoring alone was guidance until August 2026.

13. Landfill Leachate PFAS Pretreatment

Stronger regs

T-risk: Med

HARMS Landfill leachate is a concentrated PFAS source that flows to city sewer plants. In Decatur, Alabama, 3M's leachate reached the Tennessee River through the city plant (3M paid \$98.4 million in 2021). EPA's landfill rule has slipped to a "later timeline."

PLAN EPA sets PFAS pretreatment standards for landfill leachate (40 CFR Part 445) on a 24-month deadline.

ADVANTAGES Protects city plants and ratepayers ("passive receivers"); targets a known hot spot.

NOTE Variant of Top Case #1 (its 36-month tier). Pretreatment (indirect discharge) draws a T argument.

14. Carpet and Textile Mill PFAS Standard

Stronger regs

T-risk: Low

HARMS A May 2026 AP investigation found Georgia officials knew carpet-mill PFAS was polluting rivers near Dalton while the public was not told; Alabama had asked Georgia for data in 2017–18, and Georgia did not require industrial users to monitor PFAS.

PLAN EPA issues PFAS pretreatment and effluent standards for textile and carpet finishing (Part 410) and requires downstream-state notification.

ADVANTAGES Protects downstream drinking water (Coosa River, Alabama); interstate fairness; a vivid lay-judge story.

NOTE Variant of Top Case #1; pairs with #84.

15. Update the 1983 Semiconductor Rule for PFAS

Stronger regs

T-risk: Med

HARMS The Electrical and Electronic Components rule (40 CFR 469) dates to 1983 and limits only total toxic organics and fluoride; it has no PFAS limit even as new CHIPS Act fabs come online.

PLAN EPA revises Part 469 with PFAS monitoring and limits for fabs, phased in with new construction.

ADVANTAGES Gets ahead of a growing source; avoids future cleanup costs near new fabs such as TSMC's in Arizona.

NOTE Most fabs discharge to city sewers (indirect), so define "discharge" to include pretreatment.

16. "Fish on the Table": PFAS Human-Health Water Quality Criteria

Stronger regs

T-risk: Med

HARMS EWG's 2023 analysis of EPA fish data found eating one freshwater fish a year can equal a month of drinking water with PFOS at 48 ppt; EPA's human-health PFAS criteria are still only a December 2024 draft.

PLAN EPA finalizes human-health and fish-tissue criteria for PFOA, PFOS, and PFBS and requires states to adopt them into standards that drive permit limits.

ADVANTAGES Protects anglers and subsistence fishing families; gives permit writers numbers to use after *San Francisco v. EPA*.

NOTE Criteria are one step removed from discharge; argue they set the permit limits.

17. Military and Airport Firefighting-Foam Discharges

Stronger regs

T-risk: Med

HARMS Firefighting foam (AFFF) used at military bases and airports is a major PFAS source; DoD has hundreds of sites headed to remedial investigation with widespread schedule slips.

PLAN Require NPDES PFAS limits and monitoring at federal facilities and airports discharging AFFF-impacted wastewater; waive sovereign immunity for penalties.

ADVANTAGES Equal treatment under law ("government obeys its own rules"); protects base communities.

NOTE Overlaps #69 (federal facilities); pick one.

18. Polluter-Pays PFAS Discharge Fee

Stronger regs

T-risk: Med

HARMS Minnesota's pollution agency estimated removing PFAS from municipal wastewater would cost \$14–28 billion over 20 years for that state alone, which ratepayers would pay, not polluters.

PLAN A per-pound federal fee on permitted PFAS discharges, with revenue dedicated to source-control programs and POTW upgrades.

ADVANTAGES Shifts costs from families to dischargers; creates an incentive to substitute.

NOTE A fee looks like taxation; tie it to the permit system to stay topical.

19. Protect the "Passive Receivers" (Pretreatment + Liability Relief)

Mixed

T-risk: High

HARMS City sewer plants receive PFAS they did not make and fear CERCLA liability; utility groups and EPW Chair Capito make passive-receiver relief a condition of PFAS legislation (H.R. 1267 is stalled).

PLAN National PFAS pretreatment standards on industrial users paired with a liability shield for compliant utilities.

ADVANTAGES Ratepayer protection; breaks the political logjam on PFAS.

NOTE Variant of Top Case #1. The liability plank is CERCLA, not discharge regulation, so it is extra-topical risk. Keep pretreatment as the core.

20. Medicine in the River: Pharmaceutical Manufacturing Rule

Stronger regs

T-risk: Low

HARMS The pharmaceutical manufacturing guideline (40 CFR 439) dates to 1976 with amendments through 2003 and reportedly does not limit active drug ingredients (verify in 40 CFR 439); antibiotic residues in effluent are linked to resistance.

PLAN EPA revises Part 439 to add active-ingredient limits (starting with antibiotics) and monitoring.

ADVANTAGES Slows antibiotic resistance; protects aquatic life.

NOTE Neg will argue drug shortages and offshoring; phase in.

21. Micropollutant Upgrades Paid by Producers (Swiss/EU Model)

Stronger regs

T-risk: Med

HARMS U.S. sewer plants are not designed to remove drug residues and other micropollutants; USGS found intersex traits in 82–100% of male smallmouth bass at sampled Potomac-basin sites (causes mixed; do not blame wastewater alone).

PLAN Require advanced (ozone/carbon) treatment at the largest plants discharging to drinking-water sources, financed by a producer-responsibility charge on drug and cosmetic makers.

ADVANTAGES Switzerland requires micropollutant removal at roughly 100–120 plants; the EU's 2024 directive makes producers pay at least 80% of costs.

NOTE Keep the producer charge severable; fees on products draw an effects-T attack.

22. 1,4-Dioxane Discharge Standard

Stronger regs

T-risk: Low

HARMS Industrial 1,4-dioxane discharges upstream of drinking-water intakes in North Carolina's Cape Fear basin have been linked to downstream levels above EPA's health advisory (other sources also contribute); conventional treatment does not remove it.

PLAN EPA sets national pretreatment and effluent limits for 1,4-dioxane for listed industrial categories.

ADVANTAGES Protects downstream drinking water (Pittsboro, Wilmington).

23. Microplastics Monitoring at Large Treatment Plants

Stronger regs

T-risk: Low

HARMS A 17-plant study estimated U.S. treatment plants release billions of microplastic particles daily; EPA's microplastics attention (its April 2026 draft contaminant candidate list) is drinking-water only.

PLAN EPA adopts a standard method and requires monitoring and reporting at the largest POTWs and plastics plants, with limits considered after three years of data.

ADVANTAGES Data before regulation; low cost.

NOTE Weak harms evidence; best as a cautious "find out" case.

B. Industrial Effluent Guidelines

National technology-based limits for factories. Many date to the 1970s and 1980s; a 2025 court ruling said EPA's refusal to update seven of them ignored technology advances.

24. Refinery Selenium and Nitrogen Limits

Stronger regs

T-risk: Low

HARMS The Environmental Integrity Project found 81 refineries released about 60,000 lbs of selenium and 15.7 million lbs of nitrogen in 2021; federal refinery standards date to 1985 and set no limits for selenium, benzene, or mercury.

PLAN EPA revises 40 CFR 419 within three years to add selenium, nitrogen, and toxics limits based on current treatment technology.

ADVANTAGES Protects fish (selenium deformities) and reduces dead zones; answers the *Waterkeeper* remand.

NOTE Variant of Top Case #3 (refining only).

25. Petrochemical and Plastics Plant Modernization (OCPSF)

Stronger regs

T-risk: Low

HARMS The organic chemicals, plastics, and synthetic fibers guideline was last substantially revised in the 1990s and was one of seven categories in the 2025 *Waterkeeper* remand; Gulf Coast communities live beside these outfalls.

PLAN EPA updates Part 414 for nutrients, toxics, and PFAS on a statutory deadline.

ADVANTAGES Health of fence-line communities; modern limits for a growing industry.

NOTE Variant of Top Cases #1 and #3.

26. Fertilizer and Phosphogypsum Wastewater Rule

Stronger regs

T-risk: Med

HARMS In 2021 about 215 million gallons of nutrient-laden water from the Piney Point phosphogypsum stack were released into Tampa Bay; the fertilizer guideline dates to 1986 and was in the 2025 remand.

PLAN EPA updates fertilizer ELGs (Parts 418/422) with stack-water treatment standards, emergency discharge plans, and financial assurance.

ADVANTAGES Prevents catastrophic releases and algal blooms; protects Florida fisheries and tourism.

NOTE Variant of Top Case #3. Expect an "agricultural" T attack on fertilizer plants and "an emergency stack release is not a routine permitted discharge."

-
- 27. Restore the Meat and Poultry Processing Rule** Stronger regs T-risk: Med
- HARMS** Slaughterhouse and processing plants discharge large nitrogen and phosphorus loads under a 1974 rule (amended 2004). EPA withdrew its 2024 update in August 2025; six state attorneys general had urged stronger limits.
- PLAN** EPA finalizes the 2024 nitrogen, phosphorus, and E. coli limits with phase-ins for small plants.
- ADVANTAGES** Cleaner rivers near processing plants; protects drinking-water sources.
- NOTE** Strong inherency, but expect “meatpacking is agricultural” topicality. Processing is manufacturing (NAICS 311), not farming.
-
- 28. Data Center Discharge Standard and Disclosure** Stronger regs T-risk: Med
- HARMS** Data centers are multiplying, and their cooling-tower blowdown concentrates salts and chemicals. No federal effluent guideline covers them. Ohio proposed a data-center general permit in January 2026 and withdrew it in July after more than 7,000 comments.
- PLAN** EPA creates a data-center category with blowdown limits, chemical disclosure, and monitoring.
- ADVANTAGES** Protects small streams near new campuses; regulatory certainty for builders.
- NOTE** Many sites discharge to city sewers (indirect discharge).
-
- 29. Battery Manufacturing and Recycling Update** Stronger regs T-risk: Low
- HARMS** The battery manufacturing guideline (Part 461) dates to the 1980s and does not clearly cover lithium-ion (verify); EPA’s preliminary Plan 16 flagged it for study, but there is no final plan.
- PLAN** EPA updates Part 461 for lithium-ion manufacturing and recycling wastewater (metals, solvents, PFAS).
- ADVANTAGES** Clean supply chain for EV and grid batteries.
-
- 30. Critical Minerals: Modern Standards Plus Fast Permits** Mixed T-risk: Low
- HARMS** New lithium and critical-mineral operations face old ore-mining standards and slow, litigated permits; independent testing found toxic metals where a Texas lithium refinery discharges.
- PLAN** EPA updates ore-mining and processing ELGs (Part 440) for critical minerals in exchange for fixed permit timelines.
- ADVANTAGES** Supply-chain security and water protection together.
-
- 31. Centralized Waste Treatment Standards for Oilfield Wastewater** Mixed T-risk: Med
- HARMS** Oil and gas wastewater has few safe treatment-and-discharge pathways; EPA’s agenda would expand centralized treatment, but no proposal has been published.
- PLAN** EPA revises Part 437 to create standards-based permits for centralized treatment of oilfield wastewater, with strict monitoring.
- ADVANTAGES** Less trucking and deep-well injection; safe capacity.
- NOTE** Weak inherency: EPA’s agenda lists a proposal for about October 2026, so check whether it has published. Variant of #36–37.
-

32. Pulp and Paper Mill PFAS and Leachate

Stronger regs

T-risk: Low

HARMS Maine reporting found paper mills and their landfill leachate send PFAS through municipal plants along the Penobscot River, and Bangor's plant was flagged as the state's largest PFAS discharger in 2023 testing.

PLAN EPA adds PFAS monitoring and limits to the pulp and paper guideline (Part 430) and its leachate.

ADVANTAGES Protects tribal and downstream fisheries.

NOTE Variant of Top Case #1.

33. Modernize the National Pretreatment Program

Stronger regs

T-risk: Med

HARMS Many categorical pretreatment standards are decades old, and EPA's 2025 court loss noted it ignored pretreatment for indirect dischargers.

PLAN EPA must review all categorical pretreatment standards on a fixed cycle and update local-limits guidance for emerging contaminants.

ADVANTAGES Protects city plants and the people downstream of them.

NOTE Pretreatment (indirect discharge) draws a T argument; Top Case #3 leaves it out for that reason.

34. Food and Beverage Processor Nutrient Limits

Stronger regs

T-risk: Med

HARMS Dairy (Part 405) and fruit and vegetable processing (Part 407) standards date to the 1970s and do not reflect modern nutrient removal.

PLAN EPA updates food-processing ELGs with nitrogen and phosphorus limits.

ADVANTAGES Fewer algal blooms in rural rivers.

NOTE Expect "agricultural" topicality; frame as manufacturing.

35. Regulatory Certainty Act: Stop the Rule Ping-Pong

Streamline / dereg

T-risk: Med

GOAL CWA §101(f) (avoid needless delay) and §101(a). Steam-electric rules were rewritten in 2015, 2020, 2024, and 2025–26, so plants cannot plan.

PLAN Once an ELG is final and survives litigation, compliance dates are locked for five years unless Congress acts; EPA must publish a technology-review schedule.

ADVANTAGES Investment certainty; faster real compliance.

C. Energy and Extraction

Oil and gas wastewater, mining drainage, and power-plant heat. Good ground for both pro-regulation and streamlining cases, but watch the energy-price disadvantage.

36. Produced Water Beneficial Reuse Standard

Streamline / dereg

T-risk: Med

GOAL The Permian Basin produces roughly 21 million barrels of salty wastewater a day; deep injection has been linked to earthquakes (Texas suspended injection near Gardendale in 2021); drought-stricken regions need water. Texas got discharge authority in 2021 but had issued **zero** permits as of August 2026.

PLAN EPA revises 40 CFR 435 Subpart E to allow permitted discharge of treated produced water nationwide under strict national treatment and testing standards.

ADVANTAGES New water supply; fewer earthquakes; energy production.

NOTE EPA announced this rule in 2025, so inherency depends on the plan being stronger or statutory. T: Subpart E is the agricultural and wildlife-use exception, so expect a "this is agricultural" argument.

37. Produced Water Safeguards Before Discharge Expands

Stronger regs

T-risk: Med

HARMS Produced water can carry radium, metals, and fracking chemicals; the federal rule does not itself require treatment, and New Mexico's commission found insufficient science that any discharge is protective (2025 ban).

PLAN National minimum treatment, radium and toxics testing, tracking, and financial assurance before any produced-water discharge.

ADVANTAGES Protects rivers and public trust; makes reuse viable long term.

38. Coal-Mine Selenium Limits

Stronger regs

T-risk: Low

HARMS Appalachian mine discharges of selenium deform fish; in one West Virginia case a judge found 3,033 days of violations, yet the settlement was about \$300,000 against a possible \$169 million exposure.

PLAN EPA adds numeric selenium limits to the coal-mining guideline (Part 434).

ADVANTAGES Healthier streams; consistent rules instead of case-by-case citizen suits.

39. No-Perpetual-Treatment Rule for New Mines

Stronger regs

T-risk: Med

HARMS Some mines need water treatment forever after closing, leaving taxpayers the bill. An investigation found Interior had not rejected a mine permit over water harm in more than 20 years.

PLAN Federal discharge permits may not be issued to new mines predicted to require perpetual water treatment unless full financial assurance is posted.

ADVANTAGES Prevents future Gold Kings; protects taxpayers.

40. End Routine Thermal-Discharge Variances

Stronger regs

T-risk: Low

HARMS CWA §316(a) variances let power plants discharge hot water; an early-1990s study found about a third of steam capacity used them. EPA itself found harm at Merrimack Station (NH) before backing off.

PLAN Variances must be renewed with new biological evidence each permit cycle and account for warming rivers.

ADVANTAGES Protects fish during heat waves; Brayton Point's cooling towers showed recovery is possible.

41. Heat Limits for Crypto-Mining and Data-Center Power Plants

Stronger regs

T-risk: Med

HARMS Greenidge's plant on New York's Seneca Lake had a 2017-era permit allowing up to 134 million gallons a day of heated-water discharge; the plant now powers bitcoin mining, and Greenidge disputes any harm.

PLAN Thermal discharge limits and closed-cycle cooling for power plants dedicated to crypto or data-center loads.

ADVANTAGES Protects lakes and trout streams from new heat loads.

NOTE Variant of #40; "heat is not wastewater" draws a T argument.

42. Close the Coal Ash Leachate Loophole

Stronger regs

T-risk: Med

HARMS EPA's May 2026 proposal would drop capture-and-treat rules for "unmanaged" leachate seeping from unlined coal ash units; EPA estimates 63–111 plants are affected.

PLAN EPA withdraws the proposal and enforces the 2024 leachate limits, including retired plants that still discharge.

ADVANTAGES Keeps arsenic and mercury out of rivers.

NOTE Variant of Top Case #8; watch for "leachate to groundwater is not a discharge."

43. Cook Inlet Produced Water: End the Coastal Exception

Stronger regs

T-risk: Med

HARMS Coastal oil and gas platforms are generally zero-discharge, but Alaska's Cook Inlet platforms in state waters have an exception allowing produced-water discharge.

PLAN Apply zero discharge (or tight limits plus monitoring) to Cook Inlet platforms.

ADVANTAGES Protects beluga whale habitat and fisheries.

NOTE Verify current permit status.

44. Good Samaritans for Abandoned Coal Mines

Streamline / dereg

T-risk: High

GOAL The 2024 Good Samaritan Act covers only hardrock mines; abandoned coal mines in Appalachia leak acid drainage too. Pennsylvania's 1999 Environmental Good Samaritan Act is a working state model.

PLAN Extend federal Good Samaritan permits and liability protection to abandoned coal-mine drainage projects.

ADVANTAGES Volunteer cleanups at no taxpayer cost; healthier Appalachian streams.

NOTE Variant of Top Case #9. Coal sites also fall under the separate surface-mining (SMCRA) cleanup program, so expect a sharper topicality and "already covered" fight; verify the Pennsylvania model first.

45. Finish the Industrial Stormwater Permit

Stronger regs

T-risk: Med

HARMS EPA's Multi-Sector General Permit for industrial stormwater expired February 28, 2026, with no final replacement found; the 2026 draft would have added PFAS monitoring for about 23 sectors.

PLAN EPA issues the 2026 MSGP with PFAS indicator monitoring and plastic-pellet controls.

ADVANTAGES Gives new facilities a path to coverage; data on industrial PFAS.

NOTE Overlaps Top Case #7 (pellets). Existing facilities stay covered administratively, and the permit applies directly only where EPA is the permitting authority, so the gap is narrower than it sounds. Stormwater carries "is it wastewater?" topicality risk.

D. City Sewage and Overflows

Municipal wastewater is the heart of the topic and the safest topicality ground. About 17,500 public treatment plants serve roughly 80% of Americans.

46. Nutrient Standards for Large Sewage Plants

Stronger regs

T-risk: Low

HARMS Federal "secondary treatment" (40 CFR 133) has no nitrogen or phosphorus limits, though nutrients fuel dead zones and toxic algae.

PLAN EPA sets technology-based nitrogen and phosphorus limits for large POTWs discharging to impaired waters, with trading allowed.

ADVANTAGES Long Island Sound plant upgrades cut nitrogen about 40 million lbs and shrank the hypoxic zone by about half; Tampa Bay's seagrass recovered after advanced treatment.

NOTE Neg: agriculture is the bigger source; wastewater is only about 12% of remaining Chesapeake nitrogen.

47. Watershed Nutrient Trading for Cities

Mixed

T-risk: Low

HARMS Plant-by-plant upgrades can be far more expensive than watershed-wide solutions.

PLAN EPA authorizes watershed caps with credit trading among non-agricultural dischargers, with enforceable caps.

ADVANTAGES Connecticut's nitrogen trading program saved an estimated \$300–400 million.

48. Settle the “Blending” Rule Nationally

Mixed

T-risk: Low

HARMS Since *Iowa League of Cities v. EPA* (8th Cir. 2013), the rules for routing peak storm flows around biological treatment differ by circuit; NACWA estimates about a third of plants blend.

PLAN EPA issues a national rule allowing blending only when final effluent meets limits, with monitoring and public notice.

ADVANTAGES Legal certainty; fewer raw overflows during storms.

49. Phase Out Ocean Waivers for Less-Than-Secondary Treatment

Stronger regs

T-risk: Med

HARMS CWA §301(h) lets a few coastal plants skip full secondary treatment; San Diego’s Point Loma waiver drew an EPA decision document granting renewal in February 2026 (final status unconfirmed), tied to reuse goals the city is “reassessing.”

PLAN Waivers expire unless reuse milestones are met on schedule.

ADVANTAGES Cleaner coastal water; accelerates water recycling.

NOTE Weak harms: EPA found no adverse impact at Point Loma. The Point Loma outfall extends miles offshore, possibly beyond the 3-mile territorial sea; check topicality.

50. Reopen Ocean-Waiver Eligibility for Deep-Outfall Cities

Streamline / dereg

T-risk: Low

GOAL Honolulu faces about \$2.5 billion for secondary treatment at Sand Island by 2035 even where monitoring may show little ocean harm; the 1982 application cutoff blocks new waivers.

PLAN Allow new §301(h) applications with strict monitoring and automatic revocation if harm appears.

ADVANTAGES Affordability; money redirected to collection-system fixes.

51. Green Infrastructure Credit in Sewer-Overflow Plans

Mixed

T-risk: Low

HARMS Many sewer-overflow decrees center on costly storage tunnels and run 20–25 years.

PLAN EPA revises the CSO policy so verified green infrastructure counts toward required control and decrees can be modified to add it.

ADVANTAGES Cincinnati’s green-for-gray swaps saved more than \$150 million and Akron’s \$77 million; flood and heat co-benefits.

NOTE Variant of Top Case #5.

52. Storm-Ready Sewers: Updated Design Storms

Stronger regs

T-risk: Low

HARMS Milwaukee’s August 2025 flood caused more than 5 billion gallons of combined sewer overflow, the largest since its Deep Tunnel opened in 1992; plans are built on old rainfall data.

PLAN Permits and decrees must use current precipitation data and include resilience plans.

ADVANTAGES Protects billions in investments from becoming obsolete.

NOTE With lay judges, frame around flooding and stewardship rather than climate politics.

53. Federal Backstop for Failing Utilities

Stronger regs

T-risk: Med

HARMS Jackson, Mississippi’s sewer has been under a federal decree since 2013 and now has a court-appointed manager; Baltimore’s Back River plant required a state takeover in 2022.

PLAN Clear federal authority to appoint interim managers and require staffing and asset plans when a utility is in chronic violation.

ADVANTAGES Protects residents who cannot vote with their feet; faster compliance.

NOTE Expect a “utility governance, not discharge regulation” T argument.

54. Backup Power for Treatment Plants

Stronger regs

T-risk: Low

HARMS A power failure at the Yonkers plant in July 2026 sent about 39 million gallons of partly treated sewage into the Hudson; a 2021 power failure at Los Angeles' Hyperion plant closed beaches.

PLAN Large POTWs must have tested backup power and emergency plans as a permit condition.

ADVANTAGES Prevents spills during storms and grid failures.

55. Reuse-First Permitting

Mixed

T-risk: Med

HARMS Coastal plants discharge about 12 billion gallons of treated wastewater a day (National Academies), while the West faces shortages.

PLAN New or expanded discharge permits in water-short regions must evaluate reuse first; EPA gives discharge credits for reuse.

ADVANTAGES New water supply; less discharge (Hampton Roads SWIFT, El Paso Pure Water).

NOTE Drinking-water reuse is SDWA; keep the plan on discharge permits.

56. Tijuana: Hold the Federal Border Plant to Full Standards

Stronger regs

T-risk: Med

HARMS The Tijuana Slough shoreline has been closed continuously since December 2021; ATSDR called hydrogen sulfide a public health hazard in September 2026; environmental groups alleged hundreds of permit violations at the federally run South Bay plant (their suit settled in August 2026, and the plant reportedly met ocean discharge limits for 18 straight months).

PLAN Require the IBWC plant and expansions to meet full secondary standards with enforceable deadlines and independent monitoring.

ADVANTAGES Health of San Diego families and Navy trainees (1,168 GI illnesses among SEAL candidates, 2019–2023).

NOTE Status quo is spending heavily (reports range from \$600 million to nearly \$800 million) and claims progress; inherency is the fight.

57. End Sewage Overflows into the Great Lakes by a Date Certain

Stronger regs

T-risk: Low

HARMS Roughly 160 to 180 communities still have permitted combined sewer overflow outfalls in the Great Lakes basin (EPA counted 182 in its 2016 proposal for the notification rule finalized in 2018; get the current number), and the lakes supply drinking water to tens of millions.

PLAN Set a statutory deadline to eliminate CSOs to the Great Lakes, with affordability schedules and SRF priority.

ADVANTAGES Protects drinking water and beaches for the region.

E. Affordability, Flexibility, and Streamlining

Deregulatory and “smarter regulation” cases. Many CCA judges will like them, but check inherency carefully: the PERMIT Act and a Senate permitting package are pending, and EPA is already loosening several rules.

58. Ten-Year Permits for Good Actors

Streamline / dereg

T-risk: Low

GOAL CWA §101(f). Permits are capped at five years, and about 21% of state-issued individual permits were expired and administratively continued in FY2023.

PLAN Allow ten-year permits for dischargers with no significant noncompliance in the prior two terms, with reopeners for new standards.

ADVANTAGES Frees agency staff, cuts backlog, rewards compliance.

NOTE The House-passed PERMIT Act would allow ten-year permits for everyone, and the Senate package (S. 5653) may too (sources conflict; read its text). Distinguish: yours is earned.

59. Clear Permit Terms Act

Streamline / dereg

T-risk: Low

GOAL After *San Francisco v. EPA* (2025), vague “end-result” permit terms are unlawful; codifying the rule locks it in against future reinterpretation.

PLAN Codify that permits must contain specific, followable requirements with a published scientific basis.

ADVANTAGES Fair notice for cities and businesses; fewer lawsuits.

60. Permit Shield Certainty

Streamline / dereg

T-risk: Low

GOAL Businesses that follow their permits can still face claims over pollutants they disclosed.

PLAN Clarify that compliance with an NPDES permit is compliance with the CWA for disclosed pollutants, with exceptions for imminent hazards.

ADVANTAGES Investment certainty.

NOTE CWA §402(k) already provides a permit shield, and the House-passed PERMIT Act would broaden it. Say exactly what is new (for example, coverage of all disclosed pollutants).

61. End Zombie Permits

Mixed

T-risk: Low

HARMS Thousands of permits run years past expiration on old limits (Oregon reported 54% administratively continued in 2025).

PLAN Permits must be reissued within 18 months of expiration or automatically update to current technology standards.

ADVANTAGES Current protections and certainty at once.

62. Permit Shot Clock with a Court Remedy

Streamline / dereg

T-risk: Low

GOAL Applicants can wait indefinitely for permit decisions.

PLAN Fixed decision deadlines (e.g., 12 months for individual permits) enforceable in federal court.

ADVANTAGES Faster infrastructure and jobs.

63. National Model General Permits for Low-Risk Discharges

Streamline / dereg

T-risk: Low

GOAL Routine, low-risk discharges (hydrostatic test water, small groundwater cleanups) eat staff time.

PLAN EPA issues model general permits states can adopt within 90 days.

ADVANTAGES Staff time redirected to serious polluters.

64. Compliance First: Notice-and-Cure for Minor Violations

Streamline / dereg

T-risk: Low

GOAL Small towns and businesses face penalties for paperwork errors.

PLAN Codify no-penalty treatment for first-time, non-harmful violations corrected within 60 days, with full penalties for harm or concealment.

ADVANTAGES Encourages self-reporting; fairness.

65. Small and Rural Community Compliance Path

Streamline / dereg

T-risk: Low

GOAL Small plants cannot afford big-city technology; the FY2027 budget request would cut the Clean Water SRF to about \$155 million.

PLAN Tiered, appropriate-technology standards and longer schedules for small systems, with circuit-rider technical help.

ADVANTAGES Real compliance instead of perpetual violation.

66. Cost and Technology Transparency for Water Quality Criteria

Streamline / dereg

T-risk: Med

GOAL Permit limits flow from criteria that may not reflect cost or available technology.

PLAN EPA must publish a cost and technology-availability analysis when new criteria will drive permit limits.

ADVANTAGES Informed decisions; ratepayer savings.

NOTE Similar to PERMIT Act §3.

67. One Enforcer Rule

Streamline / dereg

T-risk: Low

GOAL CWA §101(b) state primacy; dischargers can face duplicate state and federal penalties.

PLAN When an authorized state is diligently prosecuting, EPA may not file its own penalty case unless the state fails within a set time.

ADVANTAGES Fairness; respects states.

NOTE The Act already limits some duplicate penalties (§309(g)(6), §505(b)); say exactly what is new.

68. SRF Priority Reform: Fix Overflows First, Cap Earmarks

Mixed

T-risk: High

HARMS In FY2026, 54% of the Clean Water SRF appropriation (about \$893 million) went to earmarks, leaving about \$746 million for state revolving loans.

PLAN Cap earmarks inside the SRF and require states to rank overflow and compliance projects first.

ADVANTAGES More projects financed; money goes where pollution is worst.

NOTE High T risk: funding is not “regulation.” Use only with a strong “regulatory conditions” interpretation.

F. Enforcement, Compliance, and Transparency

Making the rules on the books actually work. Pair watchdog statistics with harder-to-dismiss sources (GAO, EPA’s own data) because EPA disputes the enforcement-decline reports.

69. Federal Facilities Accountability

Stronger regs

T-risk: Med

HARMS Under *Department of Energy v. Ohio* (1992), federal facilities are immune from punitive civil penalties for past violations, and military PFAS cleanup is slipping.

PLAN Amend CWA §313 to waive sovereign immunity for civil penalties and require annual public compliance reports for federal facilities.

ADVANTAGES “No one above the law”; protects base communities.

NOTE Overlaps #17; pick one.

-
- 70. Close the “Wholly Past Violation” Gap** Stronger regs T-risk: Med
- HARMS** Under *Gwaltney* (1987), citizens cannot sue over violations that stopped before suit; repeat polluters can pause briefly and escape.
- PLAN** Allow citizen suits for violations within the past five years.
- ADVANTAGES** Private enforcement as federal filings fall.
- NOTE** Conservative judges may dislike more lawsuits.
-
- 71. Citizen-Suit Guardrails** Streamline / dereg T-risk: Med
- GOAL** Fee-shifting can reward litigation over cleanup.
- PLAN** Require proof of continuing violation and likely harm; route penalties through agencies.
- ADVANTAGES** Protects small dischargers.
- NOTE** Weak when federal enforcement is already at lows.
-
- 72. Restore Community Projects in Water Settlements** Stronger regs T-risk: Med
- HARMS** EPA’s December 2025 “compliance first” memo bars Supplemental Environmental Projects in settlements pending new guidance, cutting off funding for local water fixes that came from violations.
- PLAN** Statutory authority for SEPs in CWA settlements, limited to projects that benefit the affected watershed.
- ADVANTAGES** Penalties fix the actual river that was harmed.
-
- 73. Smart Targeting: Satellites and Data for Inspections** Stronger regs T-risk: Med
- HARMS** About 46,000 individually permitted facilities, while EPA’s budgeted positions fell about 13% from FY2025 to FY2026.
- PLAN** Require EPA to build a public, risk-based targeting model using discharge data and remote sensing.
- ADVANTAGES** More violations caught per inspector.
-
- 74. Trusted Data: Lab Accreditation and Direct Reporting** Stronger regs T-risk: Low
- HARMS** GAO found states transmit discharge data unevenly (5% to 99%), and falsification prosecutions show self-reporting can be gamed.
- PLAN** Require accredited labs and lab-to-agency electronic reporting for major dischargers.
- ADVANTAGES** Honest numbers; deters fraud.
- NOTE** Overlaps Top Case #6; use as a narrower version.
-
- 75. Annual State-by-State Enforcement Report Card** Stronger regs T-risk: Med
- HARMS** EPA says FY2025 enforcement was strong; watchdogs say it collapsed. The public cannot tell.
- PLAN** Statutory annual report on permits, backlog, violations, and enforcement by state with audited metrics.
- ADVANTAGES** Accountability for every side.
- NOTE** Reporting-only plans carry topicality risk; add binding data standards. Overlaps Top Case #6 (public data).
-

76. Intermediate Sanctions for Failing State Programs

Stronger regs

T-risk: Low

HARMS EPA has never withdrawn a state NPDES program, even after petitions (Louisiana, West Virginia, Alabama), because withdrawal is so drastic it is rarely threatened.

PLAN Create graduated sanctions (grant conditions, EPA co-permitting) short of full withdrawal.

ADVANTAGES Real oversight without federal takeover.

NOTE Overlaps Top Case #6 (EPA steps in when states don't).

77. Penalties That Exceed the Profit from Polluting

Stronger regs

T-risk: Med

HARMS When penalties are small compared with savings from not treating, violation is a business decision.

PLAN Require every CWA penalty to recapture at least the full economic benefit of noncompliance.

ADVANTAGES Deterrence; a level playing field for honest competitors.

NOTE Overlaps Top Case #6. Expect “a bigger penalty is not reform” (T-9).

78. Industrial Upset and Spill Reporting Standards

Stronger regs

T-risk: Low

HARMS A June 2026 fish kill in Missouri’s Black River was suspected to come from an industrial release exceeding pH limits; Georgia regulators attributed a 1,254-fish kill near Atlanta to a ferric chloride release (the city disputes it).

PLAN Uniform 24-hour spill reporting, downstream notice, and root-cause reports for permitted industrial dischargers.

ADVANTAGES Faster response; protects downstream users.

G. Jurisdiction, Federalism, and Legal Clarity

Who regulates, and which waters count. These are big, live political fights with medium topicality risk; define “navigable waters” and “regulation” carefully.

79. Codify a Clear WOTUS Definition

Streamline / dereg

T-risk: Med

GOAL Which waters count has flipped repeatedly; today the 2023 rule applies in 23 states and the pre-2015 definition in 27 (Harvard EELP tracker).

PLAN Congress writes a durable, *Sackett*-consistent definition into the CWA.

ADVANTAGES Certainty for landowners, cities, and builders; ends the regulatory pendulum.

NOTE Expect “WOTUS is jurisdiction, not regulation of wastewater.”

80. Protect Streams That Receive Wastewater

Stronger regs

T-risk: Med

HARMS The September 2026 supplemental WOTUS proposal offers options that would limit coverage to perennial waters, potentially removing permit protection from intermittent streams that receive mine and industrial discharges in the arid West.

PLAN Any water receiving a permitted point-source discharge remains subject to NPDES regardless of flow duration.

ADVANTAGES Keeps permits on discharges that already exist.

81. Section 401 Scope and Shot Clock

Streamline / dereg

T-risk: Med

GOAL States have used broad §401 review to block federally licensed projects; EPA proposed narrowing in January 2026 but has no final rule.

PLAN Statute: review limited to water quality impacts of discharges, complete-application checklist, hard one-year clock.

ADVANTAGES Predictability for infrastructure.

NOTE High T risk if framed around pipelines; keep to discharges. Section 401 already caps review at one year; what is new is the scope limit and complete-application rule. Section 401 plans draw a “not wastewater” T argument.

82. Protect State Section 401 Authority

Stronger regs

T-risk: Med

HARMS The proposed EPA rule and pending Senate package would narrow states’ ability to condition federally licensed projects that discharge into their waters.

PLAN Codify the 2023 “activity as a whole” approach.

ADVANTAGES State sovereignty; local water protection.

NOTE Section 401 plans draw a “not wastewater” T argument (moderate to high risk).

83. Primacy Completion Act

Streamline / dereg

T-risk: Low

GOAL CWA §101(b). Massachusetts, New Hampshire, New Mexico, and D.C. still rely on EPA-issued permits; New Mexico passed enabling law in 2025.

PLAN Transition grants and a 180-day EPA decision deadline for complete state applications.

ADVANTAGES Local control; frees EPA staff.

84. Downstream States’ Rights

Stronger regs

T-risk: Low

HARMS Upstream permits can harm downstream states (Georgia carpet-mill PFAS reaching Alabama); downstream states can only comment.

PLAN Give affected states a formal right to request an EPA objection with a deadline and access to upstream monitoring data.

ADVANTAGES Interstate fairness; federalism for the downstream state.

85. Interstate Watershed Compacts

Structural

T-risk: Med

HARMS Rivers cross state lines while permits do not. ORSANCO, the Ohio River compact, made its own pollution standards effectively optional for member states in 2019.

PLAN Authorize ORSANCO-style compacts to set enforceable basin-wide discharge standards.

ADVANTAGES Consistent rules across a river.

86. Tribal Co-Regulation Fast Track

Stronger regs

T-risk: Med

HARMS 85 tribes are eligible to set water quality standards and 52 have approved standards; EPA stopped defending the 2024 tribal reserved-rights rule in court (Sept. 2025) and announced plans to rescind it (Mar. 2026).

PLAN Streamlined path for tribes to administer NPDES and enforce standards protecting treaty fishing.

ADVANTAGES Honors treaty rights; local control.

NOTE Water-quality standards are not themselves discharge regulation; keep the plan on NPDES permits.

87. Codify the Groundwater “Functional Equivalent” Test

Mixed

T-risk: High

HARMS *County of Maui* (2020) set a seven-factor test that is hard to apply consistently.

PLAN EPA rule with clear thresholds for when wastewater reaching surface water through groundwater needs a permit.

ADVANTAGES Certainty for both regulators and dischargers.

NOTE High T risk: “into navigable waters.”

88. Restore Water-Quality Backstops After *San Francisco v. EPA*

Stronger regs

T-risk: Low

HARMS The 2025 ruling barred “end-result” permit terms, leaving gaps where specific numeric limits do not yet exist.

PLAN Require EPA to write specific numeric limits within a fixed time wherever a discharge causes a water quality violation.

ADVANTAGES Closes the gap the Court identified.

H. Vessels, Coasts, and Oceans

Keep vessel plans inside the 3-nautical-mile territorial sea (the CWA’s “navigable waters”). Sewage and graywater are textbook wastewater; ballast water is a gray zone.

89. Finish VIDA Now

Stronger regs

T-risk: Med

HARMS EPA’s 2024 vessel discharge standards have no force until the Coast Guard writes implementing rules, due about October 2026; no proposal was found as of Oct. 9, 2026. Ships still follow a 2013 permit.

PLAN Statutory deadline for Coast Guard rules, with EPA’s standards enforceable in the interim.

ADVANTAGES Enforceable limits on ballast, graywater, and scrubber discharges; certainty for shippers.

NOTE Variant of Top Case #10. If the Coast Guard publishes rules mid-season, inherency collapses. Check before each tournament.

90. Ban Open-Loop Scrubber Washwater in U.S. Waters

Stronger regs

T-risk: Med

HARMS Ships with exhaust scrubbers dump acidic washwater laden with metals and PAHs; ICCT estimates at least 10 billion tonnes a year globally. In Alaska, 17 Carnival ships logged more than 700 scrubber-limit violations in 2023–24.

PLAN Prohibit open-loop scrubber discharge within 3 nm and in ports; require closed-loop or cleaner fuel.

ADVANTAGES Protects fisheries; aligns with ports that already ban it.

NOTE Scrubber washwater is arguably an air-pollution byproduct; expect a “not wastewater” T argument.

91. Let States Keep Scrubber and Graywater Protections

Stronger regs

T-risk: Low

HARMS Once VIDA rules take effect, they could preempt (verify CWA §312(p)) state vessel-discharge rules like Connecticut’s scrubber ban.

PLAN Carve-out allowing states to keep or adopt stricter limits and fast-track no-discharge-zone petitions.

ADVANTAGES Federalism; local protection of bays.

92. Close the Great Lakes “Lakers” Ballast Exemption

Stronger regs

T-risk: Med

HARMS EPA’s VIDA rule exempts existing Great Lakes-only ships from the numeric ballast treatment standard; a new invasive shrimp was confirmed in Lake Superior in 2026.

PLAN Require ballast treatment for existing lakers by a date, with shipyard financing.

ADVANTAGES Stops spread of invasive species.

NOTE Ballast water is a “wastewater” T risk; challenge to the rule is pending in the D.C. Circuit.

93. U.S.–Canada Ballast Harmonization

Streamline / dereg

T-risk: Med

GOAL Duplicative U.S. and Canadian ballast rules burden Great Lakes shipping (the industry cites \$853 million in compliance costs).

PLAN One binational standard with mutual recognition of type approvals.

ADVANTAGES Lower costs; simpler compliance.

94. Coral Reef No-Discharge Zones

Stronger regs

T-risk: Low

HARMS Sewage nutrients and pathogens degrade reefs in Hawaii, Puerto Rico, the Virgin Islands, and Guam; few coral waters have vessel no-discharge zones (the Florida Keys is the main example).

PLAN EPA designates vessel sewage no-discharge zones in U.S. coral reef waters and funds pumpouts.

ADVANTAGES Reef tourism and fisheries.

95. Recreational Boat Pumpout Access

Stronger regs

T-risk: Low

HARMS Boat sewage near marinas closes shellfish beds where pumpouts are scarce.

PLAN Require pumpout availability at large marinas in sensitive waters; expand Clean Vessel Act grants.

ADVANTAGES Shellfish industry; swimmable harbors.

NOTE Thin evidence; mostly a local problem.

96. Finish Military Vessel Discharge Standards (Phase III)

Stronger regs

T-risk: Low

HARMS EPA finalized Navy vessel discharge standards (Uniform National Discharge Standards, Phase II) in 2017 and 2020, but they do not take effect until the Defense Department issues Phase III implementing rules.

PLAN Statutory deadline for the Phase III rules so the standards take effect in homeports.

ADVANTAGES Cleaner harbors in San Diego, Norfolk, and Pearl Harbor.

NOTE Harm evidence is thin; verify current status.

97. Alaska Seafood Processing Waste Standards

Stronger regs

T-risk: Low

HARMS Remote Alaska processors may grind and discharge fish waste under a state-issued general permit (Alaska DEC; expires May 2027); seafloor waste piles have been reported near processing hubs (verify).

PLAN Update the federal seafood-processing guideline (40 CFR Part 408) to require waste-utilization or dispersal standards and monitoring.

ADVANTAGES Healthier harbors; by-product jobs.

NOTE Harm evidence is thin, and the current permit is state-issued.

98. Modernize Ocean Discharge Criteria

Stronger regs

T-risk: Med

HARMS Ocean discharge criteria under CWA §403 reportedly date to 1980 (verify) and predate concern over PFAS and microplastics.

PLAN EPA updates 40 CFR 125 Subpart M and requires modern monitoring for ocean outfalls.

ADVANTAGES Protects coastal fisheries.

NOTE Keep the plan to outfalls inside 3 nm.

99. Cesspool Conversion Using the *Maui* Standard

Stronger regs

T-risk: High

HARMS Hawaii has about 83,000 cesspools leaking sewage toward reefs, with a state deadline of 2050.

PLAN Treat large cesspool clusters near shore as functional-equivalent discharges needing permits; accelerate conversion.

ADVANTAGES Coral reefs and swimmers' health.

NOTE High T risk (groundwater, local systems).

100. Vessel Pollution Whistleblower Rewards

Stronger regs

T-risk: Med

HARMS Princess Cruise Lines paid \$40 million (2017) for illegally dumping oil-contaminated waste, caught after a crew member blew the whistle. Whistleblower awards already exist for oil cases under the Act to Prevent Pollution from Ships.

PLAN Extend whistleblower awards to sewage and graywater violations under CWA §312 and fund Coast Guard investigations.

ADVANTAGES Catches deliberate dumping cheaply.

NOTE Related to Top Case #10. The \$40 million case involved oil, not wastewater; use it only to show whistleblowers catch cheating.

I. Cross-Border, Regional, and Other Issues

Powerful harms but harder topicality and inherency: foreign sources are not regulated by U.S. permits, the status quo is often already spending, and some ideas here (sludge, cumulative loads) work better as advantages.

101. Permanent Border Water Quality Program

Stronger regs

T-risk: High

HARMS Tijuana River sewage has closed beaches for years; current fixes depend on agreements with Mexico and appropriations.

PLAN Create a permanent EPA border program (the structure proposed in S. 2260) and add enforceable treatment standards and binding timelines for U.S. facilities.

ADVANTAGES Long-term solution rather than crisis spending.

102. New River and Nogales Border Sewage

Stronger regs

T-risk: High

HARMS The New River (Mexicali to the Salton Sea) and Nogales Wash (Arizona) carry cross-border sewage (verify current data).

PLAN Extend the border program and IBWC plant standards to these rivers.

ADVANTAGES Protects border communities.

103. Elk River Selenium: U.S. Standard and Binational Action

Stronger regs

T-risk: High

HARMS About 95% of selenium entering Montana's Lake Koocanusa comes from British Columbia coal mines. EPA approved Montana's 0.8 µg/L standard in 2021, a state court upheld it in April 2026, and the U.S. and Canada referred the issue to the International Joint Commission in 2024.

PLAN Make the Koocanusa standard a federal backstop and set a deadline for U.S. action on the Joint Commission's findings.

ADVANTAGES Protects fish in Montana and Idaho.

NOTE Weak inherency (much is already underway), and U.S. permits cannot reach Canadian mines; better as an advantage.

104. PFAS Limits for Sewage Sludge

Stronger regs

T-risk: High

HARMS EPA's January 2025 draft risk assessment found risks from PFAS-contaminated biosolids at concentrations as low as 1 ppb in some scenarios; Texas farm families sued over contaminated land.

PLAN Federal PFAS limits for sewage sludge before land application.

ADVANTAGES Protects farms and food.

NOTE Very high T risk: land application is not a discharge into navigable waters and may be called agricultural. Better as an advantage.

105. Gulf Coast Petrochemical Corridor Cumulative Limits

Stronger regs

T-risk: Med

HARMS Clusters of chemical plants along the Mississippi and Texas Gulf Coast each meet their own permits; advocates argue permitting does not adequately account for their combined effects (find a source; total-load tools such as TMDLs already exist).

PLAN Require cumulative-load analysis when permitting new or expanded discharges in heavily industrialized reaches.

ADVANTAGES Protects fence-line communities and fisheries.

J. Special Sources

Nuclear plants, desalination, and other niche dischargers. Unique cases negatives may not have prepared for, but evidence is thinner.

106. Close the Nuclear Wastewater Gap

Stronger regs

T-risk: Med

HARMS Under *Train v. Colorado PIRG* (1976), nuclear materials regulated under the Atomic Energy Act (such as tritium) are not CWA "pollutants," so states fight decommissioning discharges piecemeal. Massachusetts blocked Pilgrim's Cape Cod Bay release (upheld September 2026); a federal judge struck New York's Hudson River ban (2025).

PLAN Require a joint EPA–NRC discharge permit, with public notice and state consultation, for radioactive wastewater from decommissioning plants.

ADVANTAGES Public trust; consistent rules.

NOTE T: the resolution is not limited to the CWA, but "wastewater" and "navigable waters" fit.

107. Nuclear Decommissioning Discharge Certainty

Streamline / dereg

T-risk: High

GOAL Opposite outcomes in Massachusetts and New York leave decommissioning stuck and more expensive.

PLAN One clear federal standard and process for treated decommissioning water, preempting conflicting state bans.

ADVANTAGES Faster, cheaper cleanup; regulatory certainty.

108. National Desalination Brine Standard

Stronger regs

T-risk: Med

HARMS Desalination plants produce roughly 142 million cubic meters of brine a day worldwide (Jones et al. 2019); the U.S. has no federal brine guideline, only state rules like California's 2015 Ocean Plan amendment.

PLAN EPA creates a desalination ELG with diffuser and salinity limits.

ADVANTAGES Protects marine life while letting desalination grow.

109. Desalination Permit Streamlining

Streamline / dereg

T-risk: Med

GOAL Water-short communities face years of permitting for desalination.

PLAN A national general permit for brine discharges meeting design standards.

ADVANTAGES New drinking water faster.

110. Mosquito-Control Pesticide Permit Relief

Streamline / dereg

T-risk: High

GOAL Since *National Cotton Council* (2009), pesticide applications over water need NPDES coverage; EPA reissued the general permit on schedule (effective Oct. 31, 2026).

PLAN Exempt FIFRA-compliant public-health mosquito control from NPDES.

ADVANTAGES Faster response to disease outbreaks.

NOTE High T risk: pesticides are not “wastewater.” Weak inherency: the permit was just reissued. Better as an advantage.

Negative & Topicality Toolkit

You will be negative in half your rounds. This appendix collects the arguments that will apply to almost any affirmative on this topic: the topicality interpretations most likely to decide rounds, the generic disadvantages and minor repairs, the comparative-advantage goal traps, and a watchlist of events that could erase an affirmative's inherency during the season.

Topicality in CCA: How It Works

- Topicality must be raised in the **1NC** or it is waived. The judge decides it **right after the cross-examination following the 2NC**, before rebuttals. A non-topical finding ends the round with a negative win; if the case is topical, T is gone for the rest of the round (CCA Judge FAQ).
- CCA treats **each part of the resolution as a requirement**. A plan is topical if it “justifies the resolution as a direct result of the planks in the plan.”
- **Affirmative advantages may not be drawn from extra-topical mandates** (CCA Glossary). If an advantage comes only from a funding or study plank, argue the advantage must be thrown out even if the case is topical.
- CCA set **no letter of intent** for 2027, so no committee letter clarifies what the resolution means; intent has to be argued from the text. Every word is up for grabs.
- With a parent judge, win T in three steps: (1) a clear definition from a dictionary or the statute, (2) a simple “they violate because...” sentence, (3) one or two reasons to prefer (fair limits, negative ground, the plain words). Say the definition **more than once** and give the judge a sentence to write down.

Definitions You Can Cut

Word	Definition and source	Who it helps
reform	Merriam-Webster: “to put or change into an improved form or condition”; “to amend or improve by change of form or removal of faults or abuses.”	Neg (must improve an existing policy); aff (amending rules is a change of form)
policy	Merriam-Webster: “a high-level overall plan embracing the general goals and acceptable procedures especially of a governmental body.”	Aff (broad)
regulation	Merriam-Webster: “the act of regulating”; legal sense: “a rule or order issued by an executive authority or regulatory agency of a government and having the force of law.” Black's Law Dictionary (11th ed., via secondary source): “An official rule or order, having legal force, usu. issued by an administrative agency.”	Neg against funding-only plans; aff uses “the act of regulating” for enforcement plans

Word	Definition and source	Who it helps
wastewater	EPA terminology: “Water that has been used and contains dissolved or suspended waste materials” and “the spent or used water from a home, community, farm, or industry.” EPA adds that stormwater and infiltration “may be included” in wastewater entering a treatment plant.	Neg against pure stormwater plans; aff for sewer overflows
non-agricultural	Not defined in the Clean Water Act. The Act’s own list of pollutants includes “industrial, municipal, and agricultural waste” (§502(6)), so “non-agricultural” can be read as industrial plus municipal. Merriam-Webster: agricultural = relating to or concerned with farming.	Aff for food processors (NAICS puts meat processing in Manufacturing); neg against aquaculture (NAICS 1125 is Agriculture)
navigable waters	Clean Water Act §502(7): “the waters of the United States, including the territorial seas.” <i>Sackett v. EPA</i> (2023) narrowed which wetlands count.	Aff (the resolution copies the statute’s term)
point source	CWA §502(14): “any discernible, confined and discrete conveyance” (pipes, ditches, vessels, and more); excludes “agricultural stormwater discharges and return flows from irrigated agriculture.”	Neg against nonpoint, groundwater, or runoff plans

Copy every definition from the original page before using it. The 2027 resolution leaves all terms undefined, and several dictionary entries above were confirmed only through search summaries.

Ten Topicality Arguments to Expect (or Run)

#	Negative interpretation	Best affirmative answer	Cases most at risk
T-1	“Reform” means improve an existing policy , not repeal it or replace it with a new program.	The plan amends the existing Clean Water Act program (limits, deadlines, permit terms); whether it improves things is decided by solvency, not T.	Plans that repeal a program or remove state authority outright
T-2	“Regulation” means binding rules , not grants, loans, research, or voluntary guidance.	“Policy ... for the regulation of” covers the whole act of regulating: permits, monitoring, deadlines, enforcement.	Funding-only plans (sewer grants, revolving funds)
T-3	Stormwater is not “wastewater.” It was never “used”; EPA runs separate stormwater permits.	EPA says stormwater “may be included” in wastewater at treatment plants; combined sewers mix the two; industrial stormwater shares the same NPDES program.	MS4/urban runoff (high); industrial stormwater and pellets (medium)

#	Negative interpretation	Best affirmative answer	Cases most at risk
T-4	“Discharge into navigable waters” means a direct point-source addition. Pretreatment (factory → city sewer) and groundwater are not discharges “into” navigable waters.	Pretreatment exists to stop pollutants passing through city plants into rivers and is enforced through the city plant’s NPDES permit; <i>County of Maui</i> (2020) covers the “functional equivalent” of a direct discharge.	Pretreatment-only plans (medium); groundwater (high)
T-5	“Navigable waters” means navigable in fact (<i>The Daniel Ball</i> , 1870), or plans that redefine “waters of the U.S.” regulate jurisdiction, not wastewater.	The resolution borrows the Clean Water Act’s defined term; the legal meaning controls.	WOTUS-redefinition and wetlands plans
T-6	“Non-agricultural” excludes everything farm-related , including meat processing, food processing, and aquaculture.	The Act separates “industrial, municipal, and agricultural waste”; NAICS classifies meat and poultry processing as Manufacturing; EPA regulates them as industrial categories.	Aquaculture (high); meat/poultry and food processing (medium)
T-7	“The United States Federal Government ... its policy” requires federal action , not orders to states.	Plan text says Congress or EPA acts; 47 states run NPDES only under federal rules, so changing the federal floor is federal policy.	Plans that mandate states directly
T-8	Effects/extra-T: the plan must regulate the discharge itself , not product bans, labeling, or upstream chemical rules.	The plan controls what leaves the pipe (limits, monitoring); any upstream piece is a means to that end.	Product-ban plans (microbeads, PFAS manufacturing bans, 6PPD)
T-9	More enforcement is not “reform.” Hiring inspectors or raising a fine amount is more of the same policy.	Changing the trigger, structure, or terms of enforcement (automatic escalation, independent labs) is a change of form.	Pure enforcement-funding plans
T-10	“Policy or policies” does not allow a bundle of unrelated changes.	“Policies” is plural on purpose; every plank regulates non-agricultural wastewater discharge.	Kitchen-sink plans

TOPICALITY RISK LADDER (LOWEST TO HIGHEST)

1. **Lowest:** effluent limits or permit conditions for industrial or municipal point sources discharging to rivers, lakes, or coasts (PFAS limits, nutrient limits, monitoring and reporting).
2. **Low to medium:** combined and sanitary sewer overflows; structural enforcement changes; pretreatment.
3. **Medium:** industrial stormwater; food processors; federal–state delegation changes; anything tied to the WOTUS definition.
4. **High:** municipal or construction stormwater; aquaculture; anything touching farms or CAFOs; groundwater and nonpoint pollution; funding-only plans; product bans; repeal-only plans.

Generic Negative Positions

These arguments apply to many affirmatives. In front of parent judges, **lead with stock issues** (inherency, solvency, topicality) and use disadvantages as support. CCA calls the stock issues the primary basis for decisions.

Position	How it links	Evidence to look for	Expect the aff to say
Status quo solves / inherency	EPA has a pending rule, a consent decree, or a state program that already addresses the harm.	Federal Register and EPA Unified Agenda entries; the affirmative’s own state examples (Michigan, California, Alaska) prove states can act.	“Pending is not final”; “a few states is a patchwork.”
Cost / jobs / competitiveness DA	New limits require treatment upgrades at plants, refineries, or utilities.	Industry comments on the rule (API, AFPM, ACC, NACWA); EPA economic analyses.	The Act already requires limits to be “economically achievable.”
Ratepayers / unfunded mandate DA	Cities pass costs to households; state and local governments paid about 92% of public wastewater spending in 2023 (CRS).	EPA’s 2022 Clean Watersheds Needs Survey (\$630 billion over 20 years); rising sewer bills (Bluefield 2026).	Phase-ins, revolving-fund priority, or polluter-pays design.
Federalism DA (§101(b))	The plan overrides state choices in the 47 states that run their own permit programs.	CWA §101(b) text; state agency and governor comments; <i>Sackett</i> era state-primacy rhetoric.	“It’s a federal floor; states can do more.”
Energy / reliability DA	Limits on power plants or cooling water could speed retirements as data-center demand grows.	EPA’s own 2025 deadline-extension reasoning (grid reliability); DOE resource adequacy reporting; NERC assessments.	A plant-specific reliability valve.

Position	How it links	Evidence to look for	Expect the aff to say
EPA capacity / trade-off DA	EPA cannot do new work without dropping something else.	FY2027 budget request of about \$4.2 billion (52% cut) and staff reductions; ORD closure; enforcement attorneys leaving DOJ.	“Normal means” funding; capacity is a reason to prioritize.
Cross-media shift (solvency)	Removing a pollutant from water moves it to sludge, landfills, or air (PFAS filters, brine, ash).	EPA PFAS destruction and disposal guidance; biosolids PFAS assessments.	Concentrated waste is easier to manage than diluted river pollution.
Legal durability (solvency)	After <i>Loper Bright</i> (2024) and <i>San Francisco v. EPA</i> (2025), agency rules face tougher court review and may be struck down.	Pending industry lawsuits; court-stay history.	Write the plan into statute.

Minor Repairs

CCA’s glossary defines a **minor repair** as a “non-resolutional small change in existing programs to solve the problem,” a form of counterplan. (The search extract of the rest of the definition looked garbled; read the glossary entry itself before relying on the wording.) Good minor repairs on this topic work inside programs that already exist:

- **Finish what is already started.** EPA finalizes a pending rule (PFAS limits for chemical makers, VIDA vessel rules) on its existing schedule.
- **Fund existing enforcement.** Restore Section 106 grants to state permit programs or EPA civil-enforcement funds rather than writing new rules.
- **Use existing tools.** Permit writers use existing water-quality-based limits, reopener clauses, or the 2019 integrated-planning authority (§402(s)).
- **Revolving-fund priority.** Direct state revolving loan funds to the harm (sewer repairs, small-town upgrades).
- **Guidance, not mandates.** EPA issues technical guidance or a model permit for states.

Watch for the affirmative answer: “That’s not minor; it’s our plan,” or “That’s exactly what failed in the status quo.” Pick repairs that are clearly smaller than the plan and that leave the affirmative’s structural change undone.

Comparative-Advantage Goal Traps

CCA requires a comparative-advantage affirmative to accept **all** goals of the policy being reformed and disclose them in the 1AC. On this topic that policy is almost always the Clean Water Act, whose goals are in **§101**. Check whether the affirmative accepted all of them:

Goal	Text (verify before quoting)	How the negative uses it
§101(a)	“restore and maintain the chemical, physical, and biological integrity of the Nation’s waters”	Deregulatory or affordability cases must show they do not slow cleanup.

Goal	Text (verify before quoting)	How the negative uses it
§101(a)(1)	“the discharge of pollutants into the navigable waters be eliminated by 1985”	Any plan that delays limits or allows new discharges moves away from this goal.
§101(a)(2)	water quality that protects fish, shellfish, and wildlife and allows recreation “wherever attainable”	Ask: is the plan’s harm a §101(a)(2) problem, or something else (drinking water, air)?
§101(b)	recognize, preserve, and protect “the primary responsibilities and rights of States”	The best trap for pro-regulation cases: new federal mandates override state choices.
§101(f)	drastic minimization of paperwork and “the best use of available manpower and funds, so as to prevent needless duplication and unnecessary delays” (exact text not confirmed)	Monitoring, reporting, and review mandates add paperwork and delay; ask the aff how its plan advances this goal.

If a comparative-advantage affirmative discloses only the goals its plan helps (for example, only §101(a)(2)), ask in cross-examination whether it accepts §101(b) and §101(f) too, then argue the plan undercuts them.

Inherency Watchlist: Check Before Every Tournament

Many cases on this topic depend on things that are **pending** as of October 9, 2026. If any of these change, an affirmative’s inherency can disappear overnight. Negatives should check each one before every tournament; affirmatives should too.

Pending item (as of Oct. 9, 2026)	Cases affected	Where to check
EPA PFAS effluent guidelines for chemical makers (OCPSF) and metal finishers (metal finishing targeted for early 2027)	PFAS (#1), PFAS list items	Federal Register; EPA Effluent Guidelines page; CRS IF12148
Final steam electric leachate rule (EPA expects by end of 2026); Second Circuit challenge to the 2034 extension	Coal ash (#8)	Federal Register; Harvard EELP tracker
Coast Guard VIDA implementing rules (deadline about Oct.–Nov. 2026)	Cruise (#10), vessel items	Federal Register (Coast Guard dockets)
WOTUS final rule (supplemental proposal comments closed Oct. 9, 2026); §401 certification final rule	Jurisdiction and permitting items	Federal Register; EPA WOTUS page
PERMIT Act (passed House Dec. 2025; 10-year NPDES permit terms) and S. 5653 (introduced Sept. 30, 2026; §401 narrowing; check whether its 10-year term covers NPDES or only §404 permits)	Streamlining cases	Congress.gov
WRDA 2026 (House passed Sept. 2026; Senate committee passed July 2026) with clean-water revolving-fund authorizations	Affordability (#5), sewer cases	Congress.gov

Pending item (as of Oct. 9, 2026)	Cases affected	Where to check
EPA Financial Capability Assessment guidance (request for comment closed May 26, 2026; any revision is pending)	Affordability (#5)	Federal Register; EPA Water Finance Center
Good Samaritan permits issued; any bill to expand the pilot	Good Samaritan (#9)	EPA Good Samaritan program page; Congress.gov
Pellet bills (H.R. 7543 / S. 4181); EPA replacement for the expired industrial stormwater general permit	Pellets (#7)	Congress.gov; EPA stormwater page
DC Water Potomac Interceptor lawsuit; any national sewer-overflow rule or bill	Pipes (#4), RTK (#2)	DOJ press releases; Congress.gov

APPENDIX B

Key Sources & Where to Research

CCA prohibits purchased cases and evidence books, so **you must cut your own cards** from original sources, with author, source, and date. This appendix lists the most useful places to start. The top ten cases each end with their own “Starter Evidence Trail”; this list covers the sources that matter across the whole topic.

CCA Rules and Strategy

Source	Why it matters	Link
CCA News: 2027 resolution announcement (Oct. 9, 2026)	Official resolution wording; confirms no letter of intent.	ccadebate.org/news
CCA Policy Debate Glossary	Official definitions: topicality, extra-topicality, minor repair, kritik, cross-examination.	Glossary PDF
CCA Judge FAQ	When and how judges decide topicality; stock issues as the primary basis for decisions.	Judge FAQ PDF
CCA Rules Committee: Comparative Advantage FAQ (2018)	Goals must come from the policy being reformed; accept all goals; no broad ideological goals.	ccadebate.org
CCA Judging page (judge orientation script)	Confirm current speech times and judge instructions.	ccadebate.org/judging
Ethos Debate articles on lay judges, inherency, and topicality	Practical homeschool-league strategy (written for NCFCA/Stoa; adapt for CCA).	ethosdebate.com

The Law Itself

Source	Why it matters	Link
Clean Water Act §101 (33 U.S.C. §1251)	Goals for comparative-advantage cases; state primacy and paperwork goals.	law.cornell.edu
Clean Water Act §502 (33 U.S.C. §1362)	Definitions: pollutant, navigable waters, point source, discharge.	law.cornell.edu
Clean Water Act §§301, 304, 307, 309, 312, 402 (33 U.S.C. §§1311, 1314, 1317, 1319, 1322, 1342)	Technology limits, effluent guidelines, pretreatment, enforcement, vessels, NPDES permits.	law.cornell.edu (Title 33)

Source	Why it matters	Link
Electronic Code of Federal Regulations, Title 40	Current regulations: Part 122 (NPDES), Part 136 (test methods), Part 403 (pretreatment), Parts 405–471 (effluent guidelines).	ecfr.gov
Federal Register	Every proposed and final EPA rule, with dates and docket numbers; your best inherency source.	federalregister.gov
Congress.gov	Bill status (PERMIT Act, S. 5653, pellet bills, WRDA, PFAS bills) and CRS reports.	congress.gov

Government Reports and Data

Source	Why it matters	Link
CRS, “Regulating PFAS Under the Clean Water Act” (IF12148), updated 2026	Neutral status of PFAS discharge rules.	everycrsreport.com
GAO-21-290 (2021), CWA compliance and enforcement data	EPA cannot verify data accuracy; ~11,000 facilities in significant exceedance (2018).	gao.gov
GAO-12-845 (2012), effluent guidelines review	EPA rarely updates old industrial standards.	gao.gov
GAO-23-105285 (2023), combined sewer overflows	EPA lacks performance goals to track overflow control.	gao.gov
GAO-20-238 (2020), abandoned hardrock mines	Scale of abandoned-mine hazards on federal land.	gao.gov
EPA Clean Watersheds Needs Survey (2022 report to Congress)	\$630.1 billion, 20-year wastewater infrastructure need.	2022 CWNS summary PDF
EPA Report to Congress on CSOs and SSOs (2004)	Still the official national overflow estimates (850 billion gallons/year from combined sewers).	Search “EPA 833-R-04-001”
EPA ECHO (Enforcement and Compliance History Online)	Facility-level permit violations, inspections, and the national CSO inventory.	echo.epa.gov
EPA Effluent Guidelines program and Preliminary Plan 16	Which industries EPA is reviewing and why.	epa.gov/eg

Trackers and Independent Analysis

Source	Why it matters	Link
Harvard Environmental & Energy Law Program, regulatory tracker	Status of each EPA water rule and the lawsuits against it.	eelp.law.harvard.edu
Environmental Integrity Project reports	Pro-regulation data on outdated standards, refineries, plastics plants, and enforcement trends. Expect a bias challenge.	environmentalintegrity.org
NACWA (National Association of Clean Water Agencies)	The sewer utilities' view: affordability, PFAS "passive receivers," integrated planning.	nacwa.org
Industry trade groups (API, AFPM, American Chemistry Council, Edison Electric Institute)	Negative cost and feasibility evidence from rulemaking comments.	Search regulations.gov dockets
Regulations.gov	Public comments on any EPA rule: great for both sides' evidence.	regulations.gov
ASCE Report Card for America's Infrastructure (2025)	Wastewater D+; aging pipes.	infrastructurereportcard.org
Surfrider Foundation Clean Water Report (2025)	Beach bacteria testing results (advocacy group).	surfrider.org

HOW TO VERIFY A FACT IN THIS GUIDE (FIVE MINUTES)

1. Open the link in the Starter Evidence Trail, or search the exact title.
2. Find the sentence that supports the claim. If you can't find it, **don't use it**.
3. Check the date. On this topic, anything about a pending rule or bill can go stale in weeks.
4. Prefer the primary source (Federal Register, statute, GAO, EPA) over a news story about it.
5. Note the author's qualifications and any bias (industry group, advocacy group), because CCA judges and opponents will ask.